THE SENATE (ELECTION) ACT, 1975

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SENATE (ELECTION) ACT, 1975

[1]ACT No. LI OF 1975

An Act to provide for the conduct of election to the Senate

[2nd July 1975]

WHEREAS it is expedient to provide for the conduct of election to the Senate and for matters connected therewith or incidental thereto ;

It is hereby enacted as follows :-

CHAPTER I.—PRELIMINARY

1. Short title and commencements.— (1) This Act may be called the Senate (Election) Act, 1975.

(2) It shall come into force at once.

2. Definitions.— (1) In this Act, unless there is anything repugnant in the subject or context, —

(a) "bye-election" means an election to fill a casual vacancy referred to pan section 77 ;

(b) "candidate" means a person proposed as a candidate for election as a member ;

(c) "Chairman" means Chairman of the Senate ;

[2][(cc) “Commission” means the Election Commission;

(ccc) “Commissioner” means the Chief Election Commissioner;]

(d) "contesting candidate" means a candidate who has been validly nominated for election as a member and has not withdrawn his candidature ;

(e) "election" means an election to the Senate other than a bye-election and includes an election to fill the seat of a member which falls vacant on the expiration of his term ;

(f) "election petition" means an election petition made under section 34;

(g) "electoral roll" means an electoral roll prepared under the law relating to the preparation and revision of electoral rolls for the time being in force ;

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[1]For Statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt.III, p.619.
The Act has been applied to the Federally Administered T ribal Areas with certain modifications by S.R.O. 746(I)/75, dated the 7th July, 1975, see Gaz. of P, 1975, Ext., Pt.II, p. 1365.
[2]Ins. by Ord.50 of 02,s.2.

(h) "member" means member of the Senate ;

(i) "nomination day" means the day appointed under section 10 for the nomination of candidates ;

(j) "polling day" means the day on which poll is taken for an election ;

(k) "Polling Officer" means a Polling Officer appointed under section 7 ;

(l) "prescribed" means prescribed by rules ;

(m) "returned candidate" means a candidate who has been declared elected as a member under this Act ;

(n) "Returning Officer" means a Returning Officer appointed under section 5 and includes a Polling Officer acting as, or performing the functions of, Returning Officer ;

(o) "rules" means rules made under this Act ;

(p) "scrutiny day" means the day appointed under section 10 for the scrutiny of nomination papers ;

(q) “voter”, means in relation to a Province, a person who is a member of the Provincial Assembly of that Province ; and

(r) "withdrawal day" means the day appointed under section 10 on or before which candidature may be withdrawn.

(2) Words and expressions used but not defined in this Act and also used in the Constitution shall, unless the context otherwise requires, have the meanings assigned to them in the Constitution.

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CHAPTER II.—ADMINISTRATIVE MACHINERY FOR THE CONDUCT OF ELECTIONS

3. Organisation and conduct of election. Subject to the provisions of this Act and the rules, the Commissioner shall regulate the procedure for organizing, and conducting an election in such manner as he may deem fit.

4. Delegation of powers. The Commissioner may authorise any of the officers subordinate to him to exercise and perform all or any of his powers and functions under this Act.

5. Returning Officers. For the purposes of an election, the Commissioner shall appoint a Returning Officer for each Province.

6. Polling Stations. The Commissioner shall provide a polling station for the purpose of election members by the members of a Provincial Assembly.

7. Polling Officers. The Commissioner shall, for the purpose of conducting an election, also appoint such number of Polling Officers to assist the Returning Officer as he may consider necessary.

8. Duties and powers of Returning Officer.— (1) A Returning Officer shall conduct the poll in accordance with the provisions of this Act and the rules and shall exercise all necessary powers for maintaining order at the polling station and shall report to the Commissioner any fact or incident which may, in his opinion, affect the conduct or fairness of the Poll.

(2) The Returning Officer may, during the course of the poll, entrust to any Polling Officer such of his functions as may be specified by him ; and it shall be the duty of the Polling Officer to perform the functions so entrusted.

(3) The Returning Officer shall authorise one of the Polling Officers to act in his place if he is, at any time during the poll, by reason of illness or other cause, not present at the polling station or is unable to perform his functions.

(4) The Returning Officer may, at any time during the poll, for reasons to be recorded in writing, suspend any Polling Officer and make such arrangements as he may consider necessary for the performance of the functions of the Officer so suspended.

(5) It shall be the duty of a Returning Officer to do all such acts and things as may be necessary for effectively conducting an election in accordance with the provisions of this Act and the rules.

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CHAPTER III.—CONDUCT OF ELECTIONS

9. Supply of list of voters. The Commissioner shall provide the Returning Officer with a list of voters of the Province.

10. Notification for election.—(1) For the purpose of an election, the Commissioner shall, by notification in the official Gazette, call upon the members of the Provincial Assembly of a Province to elect such number of members to the Senate from that Province as is specified in such notification.

(2) The Commissioner shall in the same notification fix—

(a) a day for the nomination of candidates ;

(b) a day for the scrutiny of nomination papers ;

(c) a day on or before which candidature may be withdrawn ; and

(d) a day for the taking of the poll and the place at which the poll shall be taken.

11. Nomination for election.—(1) A voter from a Province may propose or second the name of any person qualified for election to the Senate from that Province.

[1][(2) Every nomination shall be made by a separate nomination paper in the prescribed form signed both by the proposer and the seconder and shall, on solemn affirmation made and signed by the candidate, accompany—

(a) a declaration that he has consented to the nomination and that he fulfils the qualifications specified in Article 62 of the Constitution and is not subject to any of the disqualifications specified in Article 63 thereof or any other law for the time being in force for being elected as member;

(b) a declaration about his party affiliation, if any;

(c) a declaration that no loan for an amount of two million rupees or more, obtained from any bank, financial institution, cooperative society or corporate body in his own name or in the name of his spouse or any of his dependents, or any business concern mainly owned by him or the aforesaid; stands unpaid for more than one year from the due date, or has got such loan written off;

(d) a declaration that he, his spouse or any of his dependents or a business concern mainly owned by him or the aforesaid, is not in default in payment of government dues or utility charges, including telephone, electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six month, at the time of filing of nomination paper;

(e) a statement specifying his educational qualifications, occupation, National Identity Card number and National Tax Number, if any, alongwith attested copies thereof; and

(f) a statement of his assets and liabilities and those of his spouse and dependents on the prescribed form as on the preceding thirtieth day of June;

Explanation.–For the purpose of this section, the expression—

(i) loan shall mean any loan, advance, credit of finance obtained or written off on or after the 31st day of December, 1985, but shall not include the loan the recovery of which has been stayed or suspended by any order of a court or tribunal, including the High Court and the Supreme Court;

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[1]Subs. and addded by Ord. 50 of 02, s.3.

(ii) "mainly owned" shall mean holding or controlling a majority interest in a business concern;

(iii) "taxes" include all taxes levied by Federal Government, Provincial Government or a local government, but shall not include taxes that recovery of which has been stayed of suspended by any order of a court or tribunal;

(iv) "government dues and utility charges" shall, *inter alia*, include rent, charges of rest houses or lodges owned by the Federal Governments, Provincial Government, local governments or corporations established or controlled by such governments, but shall not include the government dues and utilities charges the recovery of which has been stayed or suspended by any order of a court or tribunal.]

[1][(3) Every nomination paper shall be delivered by the candidate in person to thhe Rerurning Officer who shall amknowledge receipt of the nomination paper specifying the date and time of receipt.]

(4) A person may be nominated by more than one nomination papers.

(5) Every proposal shall be accompanied by a certified copy of the relevant extract from the electoral roll in which the name of the person nominated is enrolled.

[1][(6) The nomination form and accompanying declarations and statements shall be open to inspection by the public, and copies thereof may be made available by the Commission in such manner and on payment of such fee as may by prescribed.]

12. Deposit.— (1) Subject to the provisions of sub-section (2), no nomination paper delivered under section 11 shall be accepted unless—

(a) a sum of two thousand rupees is deposited in cash by the candidate or by any person on his behalf at the time of its delivery ; or

(b) it is accompanied by a receipt showing that a sum as aforesaid has been deposited by the candidate or by any person on his behalf at any branch of the National Bank of Pakistan or at a Government Treasury or sub-Treasury.

(2) Not more than one deposit under sub-section (1) shall be required in the case of a person who has been nominated as a candidate by more than one nomination papers.

13. Scrutiny.— (1) The candidates, their proposers and seconders, and an agent authorised in writing in this behalf by each candidate, may attend the scrutiny of the nomination papers, and the Returning Officer shall give them reasonable opportunity for examining all nomination papers delivered to him under section 11.

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[1]Subs. by Ord. 82 of 02,s.2.

(2) The Returning Officer shall, in the presence of the persons attending the scrutiny under sub-section (1), examine the nomination papers and decide any objection raised by any such person to any nomination.

(3) The Returning Officer may, either of his own motion or upon any objection, conduct such summary inquiry as he may think fit and reject any nomination paper if he is satisfied that—

(a) the candidate is not qualified to be elected as a member ;

(b) the proposer or the seconder is not qualified to subscribe to the nomination paper ;

(c) any provision of section 11 or section 12 has not been complied with [1][or submits any false or incorrect declaration or statement in any material particular]; or

(d) the signature of the proposer or seconder is not genuine :

Provided that—

(i) the rejection of a nomination paper shall not invalidate the nomination of a candidate by any other valid nomination paper ;

(ii) the Returning officer shall not reject a nomination paper on the ground of any defect which is not of a substantial nature and may allow any such defect to be remedied forthwith ; and

(iii) the Returning Officer shall not inquire into the correctness or validity of any entry in the electoral roll.

[1][(3A) The Returning Officer may, for the purpose of scrutiny, require any agency or authority to produce any document or record.

(3B) Notwithstanding anything contained in sub-section (3), where a candidate deposits any amount of loan, tax or utility charges payable by him before rejection of his nomination paper on the ground of default in payment of such loan, taxes or utility charges, such nomination paper shall not be rejected for default thereof.]

(4) The Returning Officer shall endorse on each nomination paper his decision accepting or rejecting it and shall, in the case of rejection, record a brief statement of the reasons therefor.

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[1]Added and Ins. by Ord.50 of 02, s.4.

[1][(5) Where the nomination of a candidate has been rejected under this section by a Returning Officer, an appeal shall lie, within two days of the scrutiny day, to the Commissioner [2][or a member of the Commission authorized by the Commissioner]; and any order passed by the Commissioner [2][or such member as the case may be, [on such appeal [3][,after affording to the person referred to in sub-section (1) an opportunity of being heard,] shall be final [2][:]]

[2][Provided that where a nomination paper is rejected by the Returning Officer on the ground that the candidate is defaulter of loan or taxes or government dues or utility charges or has had the loan written off and the candidate pays such loan or , as the case may be, taxes, government dues or utility charges or the written off loan on or before the last date fixed for disposal of appeals and satisfies the Member of the Election Commission that such payment has been made, his nomination shall be treated as having been accepted on that ground.

(6) If the member of the Commission referred to in sub-section (5), is on the basis of information or material coming to his knowledge from any source, satisfied that a candidate whose nomination paper has been accepted is—

(a) a defaulter of loans, taxes, government dues or utility charges or has had any loan written off or is subject to any other disqualification from being elected as member of Senate, he may, on his own motion, call upon such candidate to show cause why his nomination should not be rejected, and if he is satisfied that the candidate is defaulter as aforesaid or has had a loan written off or is subject to any disqualification, he may reject his nomination paper.]

14. Publication of the list of candidates.— (1) The Returning Officer shall, after the scrutiny of nomination papers, prepare and publish in the prescribed manner a list of candidates who have been validly nominated.

(2) In case an appeal against rejection of a nomination paper is accepted by the Commissioner the list of validly nominated candidates shall be revised accordingly.

15. Withdrawals.— (1) Any validly nominated candidate may, by notice in writing signed by him and delivered on or before the withdrawal day to the Returning Officer either by such candidate in person or by an agent authorised by him in writing in this behalf, withdraw his candidature.

(2) A notice of withdrawal under sub-section (1) shall, in no circumstances, be open to recall or cancellation..

(3) On receiving a notice of withdrawal under sub-section (1), the Returning Officer shall, if he is satisfied that the signature on the notice is that of the candidate, cause a copy of the notice to be affixed at some conspicuous place in his office.

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[1]Sub-section (5) which was Previously amended by Ord. 17 of 1985, s.2 has been subs. by Senate (Election) (Amdt.) Act, 1986 (5 of 1986),s.2.
[2]Added by Ord.50 of 02,s.2.
[3]Ins. by Senate (Election) (Amdt.) Act, 1992 (24 of 1992),s.2.

(4) The Returning Officer shall, on the day next following the withdrawal day, prepare and publish in the prescribed manner a list of contesting candidates and forward a copy thereof to each such candidate, giving public notice of the date, hour and place of the poll.

16. Death of a candidate after nomination.— (1) If a validly nominated candidate who has not withdrawn his candidature dies before the completion of the proceedings relating to the election, the Returning Officer shall, by public notice, terminate such proceedings and make a report to the Commissioner.

(2) Where the proceedings relating to an election have been terminated under sub-section (1), fresh proceedings shall be commenced in accordance with the provisions of this Act as if for a new election.

17. Postponement, etc., under certain circumstances. Where the proceedings relating to nomination, scrutiny or withdrawal cannot, for reasons beyond the control of the Returning officer, take place on the day appointed therefor, he may postpone or adjourn such proceedings and shall, with the approval of the Commissioner, by public notice fix another day for the proceedings so postponed or adjourned and, if necessary, also the day or days for any subsequent proceedings.

18. Uncontested election.—(1) Where after scrutiny under section 13 or withdrawal under section 15, the number of validly nominated candidates or, as the case may be, the contesting candidates from a Province is less than or equal to the number of seats to be filled for that Province, the Returning Officer shall, by public notice declare such candidates to be elected to the seats and send a return of election to the Commissioner:

Provided that, if after scrutiny any candidate indicates that he intends to file an appeal under sub-section (5) of section 13 against the rejection of his nomination paper, no person shall be declared elected uncontested until the period for filing such appeal has expired and no such appeal has been filed, or where an appeal is filed, until the disposal of such appeal.

(2) The Commissioner shall publish in the official Gazette the names of the returned candidates.

(3) Where the number of candidates declared elected under sub-section (1) is less than the number of seats to be filled, fresh proceedings shall be commenced in accordance with the provisions of this Act as if for a new election, to fill the seat or, as the case may be, seats remaining vacant.

19. Contested election. If after withdrawals, if any, the number of candidates exceeds the number of seats, the Returning Officer shall, on the appointed day, conduct the poll, after giving a notice thereof to the contesting candidates.

20. Hours of poll. The Returning Officer shall, subject to any direction of the Commissioner, fix the hours during which the poll shall be taken and give public notice of the hours so fixed.

21. Absence of candidates, etc., not to invalidate acts, etc. Where any act or thing is required or authorised by this Act to be done in the presence of a candidate or an agent authorised by him in writing in this behalf, the failure of such person to attend at the time and place appointed for the purpose shall not invalidate any act or thing otherwise validly done.

22. Adjourned poll.- (1) If at any time the poll is interrupted or obstructed for reasons beyond the control of the Returning Officer, he may stop the poll and, when he so stops the poll, shall inform the Commissioner of his having done so.

(2) Where a poll is stopped under sub-section (1), the Returning Officer shall, immediately report the circumstances to the Commissioner and as soon as may be appoint, with the approval of the Commissioner, a day for a fresh poll and fix the place at which, and the hours during which, such fresh poll shall be taken.

(3) All voters shall be allowed to vote at the fresh poll taken under sub- section (2) and no vote cast at the poll stopped under sub-section (1) shall be counted.

23. Voting procedure.— (1) All voters shall be entitled to vote at an election.

(2) No vote shall be given by proxy.

(3) Each voter shall have only one transferable vote irrespective of the number of seats to be filled.

(4) A voter shall cast his vote in the prescribed manner.

(5) The ballot papers shall be in such form as the Commissioner may specify

(6) The polls shall be by secret ballot.

24. Proceedings at the close of poll.— (1) Immediately after the close of poll, the Returning Officer shall proceed with the counting of votes in the prescribed manner.

(2) On the completion of counting, the Returning Officer shall prepare and certify a return of the election and submit the same to the Commissioner in the prescribed manner.

[1][(3) Every returned candidate shall, within five days from the date of election, submit return of election expenses in accordance with the provision of section 29.]

[1][25. Declaration of result of election. On the receipt of the returns of the election under sub-section (3) of section 24, the Commissioner shall publish in the official Gazette the names of returned candidates.

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[1]Added by Ord. 50 of 02, s.5.
[2]Subs., Ins and added by Ord. 50 of 02, ss.6-9.

Provided that the name of a candidate shall not be published who fails to submit th return of election expenses as required by sub-section (3) of section 24.]

25A. Yearly submission of statement of assets and liabilities.— (1) Every member shall in the prescribed form submit a statement of assets and liabilities of his own, his spouse and dependents annually to the Commissioner by the thirtieth day of September each year.

(2) The statements of assests and liabilities submitted under sub-section (1) shall be published in the Official Gazette and copies thereof can be obtained on payment of prescribed fee.

(3) The Commision shall, by the fifteenth day of October each year, notify the names of the members who fail to file staements of assets and liabilities within the period specified in sub-section (1) and by an order, direct that such member shall cease to function till such statement is submitted.

(4) Where a member submits the statement of assets and liabilities under sub-section (1) which is found to be false in material particulars, he may be proceeded under section 62 for committing the offences of corrupt practice.

26. Return or forfeiture of deposit.— (1) After the termination of the proceedings relating to an election under section 16 where the proceedings have been so terminated or after the declaration of result of an election under section 18 or section 25, the deposit made under section 12 in respect of any candidate shall be returned to the person making it or to his legal representative, except the deposit in respect of a candidate for whom no voter has either voted or indicated any preference.

(2) A deposit which is not required to be returned under sub-section (1), shall be forfeited to the Federal Government.

CHAPTER IV-ELECTION EXPENSES

27. Election expenses. In this Chapter, "election expenses" means any expenditure incurred or payment made, whether by way of gift, loan, advance, deposit or otherwise, for the arrangement, conduct or benefit of, or in connection with, or incidental to, the election of a candidate, including expenditure on account of issuing circulars or publications or otherwise presenting to the voters the candidate or his views, aims or objects, but does not include the deposit made under section 12.

28. Restriction on election expenses.—(1) No person shall, except to the extent provided in sub-section (2), make any payment whatsoever towards the election expenses of a candidate except to such candidate.

(2) No person other than a candidate shall incur any election expenses of the candidate :

Provided that any person may, if so authorised by a contesting candidate in writing specifying a maximum amount, to the extent of such amount, make payment for stationery, postage, telegram and other petty expenses.

(3) The election expenses of a contesting candidate shall not exceed [1][one million and five hundred] rupees.

[1][(4) a Candidate by a statement, explain the particulars of any election expense supported by receipts and voucher of payments made thereof, except where the amount is less than five hundred rupees.]

29. Return of election expenses.—(1) Every contesting candidate [1][other than a returned candidates] shall, within thirty days after the publication of the name of the returned candidates under section 18 or section 25, submit to the Returning Officer a return of election expenses in the prescribed form containing—

(a) a statement of all payments made by the contesting candidate together with all the bills and receipts ;

(b) a statement of all disputed claims, if any, of which the contesting candidate is aware ;

(c) a statement of all unpaid claims, if any, of which the contesting candidate is aware ; and

(d) a statement of all moneys, securities or equivalent of money received from any person for the purpose of election expenses specifying the name of every such person.

(2) The return submitted under sub-section (1) shall be accompanied by an affidavit sworn by the contesting candidate.

30. Inspection of returns, etc.—(1) The return and documents submitted under section 29 shall be kept by the Returning Officer in his office or at such other convenient place as he may think fit and shall, during one year from the date of their receipt by him, be open to inspection by any person on payment of the prescribed fee.

(2) The Returning Officer shall, on an application made in this behalf and on payment of the prescribed fee, give any person copies of any return or document kept under sub-section (1) or of any part thereof.

CHAPTER V.— ELECTION DISPUTES

31. Election not to be questioned except by election petition or appeal.— (1) Save as provided in section 32, no election shall be called in question except by an election petition under section 34.

(2) No question that can be settled in an appeal under section 32 shall be raised by an election petition or before any Court or authority whatsoever, nor shall any question that can be raised by an election petition be raised before any Court or authority other than an Election Tribunal.

32. Appeal against count.—(1) A contesting candidate who is aggrieved by any proceedings under section 24 relating to the count may prefer an appeal challenging the count to the Commissioner.

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[1]Subs. Ins. and added by Ord. 50 of 02, ss.6-9.

(2) An appeal under sub-section (1) may be made by the candidate in person, or through a person authorised in writing by the candidate in this behalf, within three days next following the date of the completion of the count under section 24.

(3) The appeal shall be addressed to the Commissioner and shall be filed with the Commissioner or with the Secretary, Election Commission.

(4) The appeal shall be in the form of a memorandum which shall state the grounds for such appeal and shall be accompanied by as many copies thereof as the number of contesting candidates at an election.

(5) The Commissioner may, after giving the parties concerned an opportunity of being heard,—

(a) dismiss the appeal ; or

(b) if he does not dismiss the appeal, determine the result of the election on the count of valid votes as corrected, after adjudicating upon the invalid votes, if any, and make such consequential order as may be necessary.

(6) The decision of the Commissioner on appeal under sub-section (5) shall be final.

33. Commissioner to have certain powers of a Court. For the purpose of the disposal of an appeal under section 32, the Commissioner shall have the same powers as are vested in a Court under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit in respect of the following matters, that is to say,—

(a) enforcing the attendance of any person and examining him on oath ;

(b) compelling the discovery and production of documents, articles or things ;

(c) issuing commissions for the examination of witnesses ;

(d) requiring the deposit of diet and traveling expenses of witnesses ;

(e) receiving evidence on affidavits ;

(f) granting adjournments ; and

(g) summoning and examining*suo motu* any person whose evidence appears to be material.

34. Election petition. An election petition shall be presented to the Commissioner within forty-five days of the publication of the result of the election in the official Gazette and shall be accompanied by a receipt showing that the petitioner has deposited a sum of two thousand rupees at any branch of the National Bank of Pakistan or at a Government

Treasury or sub-Treasury in favour of the Commissioner as security for the costs of the petition.

35. Parties to the petition. The petitioner shall join as respondents to his election petition—

(a) all contesting candidates; and

39. Power to transfer petition.— (1) The Commissioner, either of his own motion or on an application made in this behalf by any of the parties, may, at any stage, transfer an election petition from one Tribunal to another Tribunal, and the Tribunal to which the election petition is so transferred shall proceed with the trial of the petition from the stage at which it is transferred:

(b) any other candidate against whom any allegation, if any, of any corrupt or illegal practice is made, and shall serve personally or by registered post on each such respondent a copy of his Petition.

Explanation.— In this section and in the following provisions of this Chapter, "corrupt or illegal practice" means a "corrupt practice" or an "illegal practice" within the meaning of Chapter VI.

36. Contents of petition.- (1) Every election petition shall contain—

(a) a precise statement of the material facts on which the petitioner relies;

(b) full particulars of any corrupt or illegal practice or other illegal act alleged to have been committed, including as full a statement as possible of the names of the parties alleged to have committed such corrupt or illegal practice or illegal act and the date and place of the commission of such practice or act; and.

(c) the relief claimed by the petitioner.

(2) A petitioner may claim as relief any of the following declarations, namely—

(a) that the election of the returned candidate is void; or

(b) that the election of the returned candidate is void and that the petitioner or some other person has been duly elected; or

(c) that the election as a whole is void.

(3) Every election petition and every schedule or annex to that petition shall be signed by the petitioner and verified in the manner laid down in the Code of civil Procedure, 1908 (Act V of 1908). for the verification of pleadings.

37. Procedure on receipt of petition by the Commissioner.— (1) The Commissioner shall return an election petition to the petitioner if he finds that it has not been presented within the time specified in section 34 or is not accompanied by a receipt of the deposit required to be made under that section.

(2) If an election petition is not returned under sub-section (1) the Commissioner shall refer it for trial to a Tribunal.

38. Appointment of Tribunal.— (1) For the trial of election petitions under this Act the Commissioner shall appoint as many Election Tribunals as may be necessary.

(2) A Tribunal shall consist of a person who is a Judge of a High Court.

Provided that the Tribunal to which an election petition is so transferred may, if it thinks fit, recall and examine any of the witnesses already examined.

40. Place of trial. The trial of an election petition shall be held at such place or places as the Tribunal may think fit.

41. Advocate-General to assist the Tribunal. The Advocate-General for a Province shall, if a Tribunal so requires, assist the Tribunal at the hearing of an election petition in such manner as it may require.

42. Appearance before Tribunal. Any appearance, application or act before a Tribunal may be made or done by a party in person or by an advocate or any other person entitled or allowed to plead in any civil Court and duly appointed to act on his behalf:

Provided that the Tribunal may, where it considers it necessary, direct any party to appear in person.

43. Procedure before Tribunal.- [1][(1) Subject to the provisions of this Act and the rules, every election petition shall be tried, as nearly as may be tried, in accordance with the procedure laid down by the [2][Commissioner].]

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(2) Subject to the provisions of this Act, the [3][Qanun-e-Shahdat Order, 1984 (P.O.No.X of 1984) (I of 1872) shall apply for the trial of an election petition.

(3) The Tribunal may, at any time, upon such terms and on payment of such fee as it may direct, allow, a petition to be amended in such manner as may, in its opinion, be necessary for ensuring a fair and effective trial and for determining the real questions at issue, so however that no new ground of challenge to the election is permitted to be raised.

(4) At any time during the trial of an election petition, the Tribunal may call upon the petitioner to deposit such further sum by way of security, in addition to the sum deposited under section 34, as it may think fit.

44. Dismissal of petition during trial.—The Tribunal shall dismiss an election petition, if—

(a) the provisions of section 35 or section 36 have not been complied with; or

(b) the petitioner fails to make the further deposit required under sub-section (4) of section 43.

45. Powers of the Tribunal.— (1) The Tribunal shall have all the powers of a civil Court trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), and shall be deemed to be a civil Court within the meaning of sections [4][476] 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

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[1]Subs. by the Senate (Election) (Amdt.) Act, 1985 (10 of 1985),s.2.
[2]Subs. by the Senate (Election) (Amdt.) Act, 1986 (5 of 1986), s.3.
[3]Subs. by Ord. 52 of 02,s.10.
[4]Ins.by Act 10 of 1985, s.3.

(2) For the purpose of enforcing attendance of witnesses, the local limit of the jurisdiction of the Tribunal shall be the territories to which this Act extends.

46. Further provision relating to evidence and witnesses.—(1) Notwithstanding anything to the contrary contained in any other law for the time being in force, no document shall be inadmissible in evidence at the trial of an election petition only on the ground that it is not duly stamped or registered.

(2) No witness shall be excused from answering any question as, to any matter in issue, or relevant to a matter in issue, in the trial of all election petition upon the ground that the answer to such question way incriminate or tend to incriminate him or that it may expose or tend to expose him to any penalty or forfeiture, but no witness shall be required or permitted to state for whom he has voted at an election.

(3) A witness who answers truly all questions which he is required to answer shall be entitled to receive a certificate of indemnity from the Tribunal and an answer given by him to a question put by or before the Tribunal shall not, except in the case of any criminal proceeding for perjury in respect of his evidence, be admissible in evidence against him in any civil or criminal proceedings.

(4) A certificate of indemnity granted to any witness under sub-section (3) may be pleaded by him in any Court and shall be a full and complete defence to or upon any charge under Chapter IX-A of the Pakistan Penal Code (Act XLV of 1860) or under this Act arising cut of the matter to which such certificate relates but it shall not be deemed to relieve him from any disqualification in connection with an election imposed by any law for the time being in force.

(5) The reasonable expenses incurred by any person in attending to give evidence may be allowed to him by the Tribunal and shall, unless the Tribunal otherwise directs, be deemed to be part of the costs.

47. Recrimination where seat is claimed.— (1) Where in an election petition a declaration is claimed that a candidate other than, the returned candidate has been duly elected, the returned candidate or any other party may produce evidence to prove that the election of such other candidate would have been declared void had he been the returned candidate and had a petition been presented calling his election in question:

Provided that the returned candidate or such other party as aforesaid shall not be entitled to give such evidence unless he or it has within the fourteen days next following the commencement of the trial, given notice to the Tribunal of his or its intention so to do anti has also deposited the security referred to in section 34.

(2) Every notice referred to in sub-section (1) shall be accompanied by a statement of the case, and all the provisions relating to the contents, Verification, trial and procedure of an election petition, or to the security deposit in respect of an election petition, shall apply to such a statement as if it were all election petition.

48. Decision of the Tribunal.— (1) The Tribunal may, upon the conclusion of the trial of an election petition, make an order—

(a) dismissing the petition;

(b) declaring the election of the returned candidate to be void;

(c) declaring the election of the returned candidate to be void and the petitioner or any offer contesting candidate to have been duly elected; or

(d) declaring the election as a whole to be void.

[1][(1A) The trial of the election petition shall proceed day to day and the decision thereof shall be taken by the Tribunal within four months form the date of its receipt from the Commissioner

Provided that where the delay in the proceeding is occasioned by any act or omission of a returned candidate or any other person acting on his behalf the Tribunal may refer to the Commission that such candidate may be declared to have ceased to perform the functions of his office either till the conclusion of the proceedings or for such period as the Commission may direct.]

(2) Save as provided in sub-section (3), the decision of a Tribunal on an election petition shall be final.

(3) Any person aggrieved by a decision of the Tribunal, may, within thirty days of the announcement of the decision, appeal to the Supreme Court on any question, whether of law or fact, arising from the decision.

49. Ground for declaring election of returned candidate void.— (1) The Tribunal shall declare the election of the returned candidate to be void if it is satisfied that—

(a) the nomination of the returned candidate was invalid; or

(b) the returned candidate was not, on the nomination day, qualified for, or was disqualified from, being elected as a member; or

(c) the election of the returned candidate has been procured or induced by any corrupt or illegal practice; or

(d) a corrupt or illegal practice has been committed by the returned candidate or by any other person with the consent or connivance of the candidate.

(2) The election of a returned candidate shall not be declared void on the ground—

(a) that any corrupt or illegal practice has been committed if the Tribunal is satisfied that it was not committed by, or with the consent or connivance of,

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[1] Ins. by Ord. 50 of 02, s.11.

that candidate and that the candidate took all reasonable precaution to prevent its commission; or

(b) that any of the other contesting candidates was, on the nomination day, not qualified for, or was disqualified from, being elected as a member.

50. Ground for declaring a person other than a returned candidate elected. The Tribunal shall declare the election of the returned candidate to be void and the petitioner or any other contesting candidate to have been duly elected, if it is so claimed by the petitioner or any of the respondents and the Tribunal is satisfied that the petitioner or such other contesting candidate was entitled to be declared elected.

51. Ground for declaring election as a whole void. The Tribunal shall declare the election as a whole to be void if it is satisfied that the result of the election has been materially affected by reason of—

(a) the failure of any person to comply with the provisions of this Act or the rules; or

(b) the prevalence of extensive corrupt or illegal practice at the election.

52. Other provisions relating to tribunal.— (1) An order of a Tribunal under section 48 shall take effect on the date on which it is made and shall be communicated to the Commissioner who shall publish it in the official Gazette.

(2) The Tribunal shall, after an election petition has been disposed of, forward the record thereof to the Commissioner who shall retain it for a period of five years from the date of its receipt and shall thereafter cause it to be destroyed.

53. Withdrawal of petition.— (1) An election petition may be withdrawn—

(a) before a Tribunal has been appointed, by leave of the Commissioner; and

(b) after a Tribunal has been appointed, by leave of the Tribunal.

(2) Where leave is granted by the Tribunal, the petitioner shall be ordered to pay the costs incurred by the respondents to the election petition or such portion thereof as the Tribunal may direct.

54. Abatement on death of petitioner.— (1) An election petition shall abate on the death of the petitioner or the sole survivor of several petitioners.

(2) Where a petition abates under sub-section (1) after a Tribunal has been appointed, notice of the abatement shall be given by, the Tribunal to the Commissioner.

55. Death or withdrawal of respondent. If, before the conclusion of the trial of an election petition, a respondent dies or gives notice in the prescribed form that he does not intend to contest the petition, and no respondent remains to contest the petition, the Tribunal shall, without any further hearing, or after giving such person as it may think fit an opportunity of being heard, decide the case *ex parte*.

56. Failure of petitioner to appear. Where, at any stage of the trial of an election petition, no petitioner makes an appearance, the tribunal may dismiss the petition for default, and make such order as it may think fit.

[1][**56A. Additional powers of the Tribunal**.—(1) If a Tribunal is, on the basis of any material coming to its knowledge from any source or an information laid before it, of the opinion that a returned candidate was a defaulter of loan, taxes, Government dues or utility charges, or has submitted a false or incorrect declaration regarding the payment of loan, taxes, Government dues or utility charges, or has submitted a false or incorrect statement of assets and liabilities of his own, spouse and dependents, under section 11, it may, its own motion or otherwise, call upon any such candidate to show cause why his election should not be declared void and, if it is satisfied that such candidate is defaulter or has submitted false or incorrect declaration as aforesaid, it may without prejudice to any order that may be, or has been, made on an election petition, or any other punishment, penalty or liability which such candidate may have incurred under this Act or under any other law for the time being in force, make an order—

(i) declaring the election of the returned candidate to be void; or

(ii) declaring the election or the returned candidate to be void and any other contesting candidate to have been duly elected.

(2) If on examining the material or information referred to in sub-section (1), a Tribunal finds that there appear reasonable grounds for believing that a returned candidate is a defaulter or has submitted false or incorrect declaration referred to in sub-section (1), it may, pending decision of the motion under sub-section (1), direct that the result of the returned candidate shall not be published in the official Gazette.

(3) No order under sub-section (1) or sub-section (2) shall made unless the returned candidate has been provided an opportunity or being heard.]

57. Order as to costs.— (1) The Tribunal shall, when making an order under section 48, also make an order determining in its discretion the costs and specifying the persons by and to whom such costs are to be paid.

(2) If, in any order as to costs under sub-section (1), there is a direction for the payment of costs by any party to any person, such costs shall, if they have not already been paid, be payable in full, and shall upon application in writing in that behalf made to the Commissioner within six months of the order by the person to whom costs have been awarded, be paid as far as possible, out of the security for costs deposited by such party.

(3) where no costs have been awarded against a party who has deposited security for costs, or where no application for payment of costs has been made within the aforesaid six months, or where a residue remains after costs have been paid out of the security, such security or the residue thereof, as the case may be, shall, upon application in writing therefore by the person who made the deposit or by his legal representative, be returned by the Commissioner to the person making the application.

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[1]Ins. by Ord.50 of 02,s.12.

(4) Any order for costs may be enforced upon application in writing made to the principle civil court of original jurisdiction of the district in which the person from whom the costs are to be recovered resides or owns property, as if such order were a decree passed by the court:

Provided that no proceeding shall be brought under this sub-section except in respect of costs which have not been recovered by an application under sub-section (2).

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CHAPTER VI-OFFENCES, PENALTY AND PROCEDURE

58. Corrupt practice. A person is guilty of corrupt practice if he —

(a) contravenes the provisions of section 28;

[1]**[(aa)** files a false or incorrect declaration or statement under sub-section (2) of section 11.]

(b) is guilty of bribery, personation or undue influence;

(c) makes or publishes a false statement—

(i) concerning the personal character of a candidate or any of his relations calculated to adversely affect the election of such candidate or for 'the purpose of promoting or procuring the election of another candidate, unless he proves that he had reasonable grounds for believing, and did believe, the statement to be true; or

(ii) regarding the withdrawal of candidate;

(d) calls upon or persuades any person to vote, or to refrain from voting for any candidate on the ground that he belongs to ,to a particular religion, community, race, caste, sect or tribe;

(e) knowingly, in order to support or oppose a candidate, lets, lends, employs, hires, borrows or uses any vehicle or vessel for the purpose of conveying to or from the polling station any voter except himself and members of his immediate family ; or

(f) causes or attempts to cause any person present and waiting to vote at the polling station to depart without voting.

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[1]Ins. by Ord. 50 of 02,s.13.

59. Bribery. A person is guilty of bribery if he directly or indirectly by himself or by any other person on his behalf,—

(1) receives or agrees to receive or contracts for any gratification for voting or refraining from voting, or for being or refraining from being a candidate at, or for with drawing from, an election;

(2) gives, offers or promises any gratification to any person—

(a) for the purpose of inducing—

(i) a person to be, or to refrain from being, a candidate at an election ;.

(ii) a voter to vote, or refrain from voting, at an election; or

(iii) a candidate to withdraw from an election ; or

(b) for the purpose of rewarding—

(i) a person for having been, or for having refrained from being, a candidate at an election;

(ii) a voter for having voted or refrained from voting at an election; or

(iii) a candidate for having withdrawn from an election.

*Explanation***.-** In this section "gratification" includes a gratification in money or estimable in money and all forms of entertainment or employment.

60. Personation. A person is guilty of personation if he votes or applies for a ballot paper for voting, as some other person whether that other person is living or dead or fictitious.

61. Undue influence. A person is guilty of undue influence if he,—

(1) in order to induce or compel any person in to the or refrain from voting, or to offer himself as a candidate, or to withdraw his candidature, at an election, directly or indirectly, by himself or is by another person on his behalf,—

(a) makes or threatens to make use of any force, violence or restraint;

(b) inflicts or threatens to inflict any injury, damage, harm or loss;

(c) calls down or threatens to call down divine displeasure or the displeasure of any saint or *pir*;

(d) gives or threatens to give any religious sentence; or

(e) uses or threatens to use any official influence or governmental patronage ; or

(2) on account of any person having voted or refrained from voting, or having offered himself as a candidate, or having withdrawn his candidature, does any of the acts specified in clause (1). ; or

(3) by abduction, duress or any fraudulent device or contrivance,—

(a) impedes or prevents the free exercise of the franchise by a voter; or

(b) compels, induces or prevails upon any voter to vote or refrain from voting.

Explanation.— In this section, "harm" includes social ostracism or *ex*-communication or expulsion from any caste or community.

62. Penalty for corrupt practice. Any person guilty of corrupt practice shall be punishable with imprisonment for a term which may extend to [1][five] years, or with fine which may extend to [1][one million] thousand rupees, or with both.

63. Illegal practice.- (1) A person is guilty of illegal practice if he—

(a) fails to comply with the provisions of section 29 ;

(b) obtain or procures, or attempts to obtain or procure, the assistance of any person in the service of Pakistan to further or hinder the election of a candidate ;

(c) votes or applies for a ballot paper for voting at an election knowing that he is not qualified for, is disqualified from, voting ;

(d) votes or applies for a ballot paper for voting for more than once in the same polling station;

(e) removes a ballot paper from a polling station during the poll ; or

(f) knowingly induces or procures any person to do any of the aforesaid acts.

(2) A person guilty of illegal practice shall be punishable with [2][imprisonment for a term which may extend to six months and fine which may extend to five thousand rupees.]

64. Prohibition of public meetings, etc., during certain period.— (1) No person shall convene, hold or attend any public meeting, and no person shall promote or join in any procession within a Province, during a period of forty-eight hours ending at midnight following the conclusion of the poll for any election in that Province.

(2) Any person who contravenes the provisions of sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to six months, or with find which may extend to one thousand rupees, or with both.

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[1]Subs. by Ord. 50 of 2002, s.14.
[2]Subs. by Ord. 50 of 02, s.15.

65. Prohibition of canvassing in or near polling station. A person is guilty of an offence punishable with fine which may extend to one thousand rupees if he, within a radius of four hundred yards of the polling station, on the polling day,—

(a) canvasses for votes ;

(b) persuades any voter not to vote at the election or for a particular candidate ; or

(c) exhibits, except with the permission of the Returning Officer and at a place reserved for the candidate beyond the radius of one hundred yards of the polling station, any notice, sign, banner or flag designed to encourage the voters to vote, or discourage the voters from voting, for any contesting candidate.

66. Disorderly conduct near polling station. A person is guilty of an offence punishable with imprisonment for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both, if he, on the polling day,—

(a) uses, in such manner as to be audible within the polling station, any gramophone, megaphone, loudspeaker or other apparatus for reproducing or amplifying sounds;

(b) persistently shouts in such manner as to be audible within the polling station ;

(c) does any act which—

(i) disturbs or causes annoyance to any voter visiting a polling station for the purpose of voting, or

(ii) interferes with the performance of the duty of a Returning Officer or a Polling Officer or any other person performing any duty at a polling station ; or

(d) abets the doing of any of the aforesaid acts.

67. Tampering with papers.— (1) Except as provided in sub-section (2), a person is guilty of an offence punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, if he—

(a) intentionally defaces or destroys any nomination paper, ballot paper or official mark on a ballot paper;

(b) intentionally takes out of the polling station any ballot paper or puts into any ballot box any ballot paper other than the ballot paper he is authorised by law to put in;

(c) without due authority—

(i) supplies any ballot paper to any person;

(ii) destroys, takes, opens or otherwise interferes with any ballot box or packet of ballot papers in use for the purpose of election; or

(iii) breaks any seal affixed in accordance with the provisions of this Act or the rules;

(d) forges any ballot paper or official mark; or

(e) causes any delay or interruption in the beginning, conduct or completion of the procedure required to be immediately carried out on the close of the poll.

(2) A Returning Officer, Polling Officer or any other Officer or clerk on duty in connection with the election who is guilty of an offence under sub-section (1) shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

68. Interference with the secrecy of voting. A person is guilty of an offence punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, if he—

(a) interferes or attempts to interfere with a voter when he records his vote;

(b) in any manner obtains or attempts to obtain in a polling station information as to the candidate or candidates for whom a voter is about to vote or mark his preferences or has voted and marked his preferences; or

(c) communicates at any time any information obtained in a polling station as to the candidate or candidates for whom a voter is about to vote or mark his preferences or has voted and marked his preferences.

69. Failure to maintain secrecy. A Returning Officer or Polling Officer, or any candidate or agent of a candidate attending a polling station or any person attending at the counting of votes, is guilty of an offence punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, if he—

(1) fails to maintain or aid in maintaining the secrecy of voting ;

(2) communicates to any person before the poll is closed, except for any purpose authorised by any law, any information as to the official mark; or

(3) communicates any information obtained at the counting of votes as to the candidates for whom any vote is given or a preference is recorded on any particular ballot paper.

70. Officials not to influence voters. A Returning Officer, Polling Officer or any other officer or clerk on duty in connection with an election, or any member of a police force, is guilty of an offence punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, if he, in the conduct or management of an election or maintenance of order at a polling station,—

(a) persuades any person to give his vote;

(b) dissuades any person from giving his vote;

(c) influences in any manner the voting of any person; or

(d) does any other act calculated to influence the result of the election.

71. Breaches of official duty in connection with election. A Returning Officer, Polling Officer or any other person employed by any such officer in connection with his official duties imposed by or under this Act or the rules is guilty of an offence punishable with fine which may extend to one thousand rupees if he, wilfully and without reasonable cause, commits breach of any such official duty, by act or omission.

72. Assistance by Government servant. A person in the service of Pakistan is guilty of an offence punishable with imprisonment for a term which may extend to two years, or with fine which may extend to two thousand rupees, or with both, if he misuses his official position in a manner calculated to influence the result of the election.

73. Certain powers of a police officer. A police officer may—

(a) arrest without warrant, notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), any person—

(i) who commits personation or an offence under section 66 if the Returning Officer directs him to so arrest such person;

(ii) who, being removed from the polling station by the Returning Officer, commits any offence at the polling station;

(b) remove any notice, sign, banner flag used in contravention of section 65; and

(c) seize any instrument or apparatus used in contravention of section 66;

and take such steps, including use of force, as may be reasonably necessary for preventing such contravention.

74. Certain offences cognizable.— [1][(1)]Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), an offence under section 58 or section 65 or sub-section (1) of section 67 shall be a cognizable offence.

[1][(2) Notwithstanding anything contained in this Act or any other law for the time being in force, the offences of corrupt practice shall be tried by the Sessions Judge a appeal against his order shall lie before a Division Bench of the High Court.

(3) Where a proceeding against a person for being involved in corrupt practice is initiated on a complaint made by a private individual, and such person is convicted by the court and his conviction is maintained in final appeal, the complainant may be entitled to such reward payable out of the amount of fine as may be imposed by the court:

Provide that where such complaint proves to be false, mala fide, or is made for any ulterior motive to provide benefit to another person, the complainant shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.]

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[1]Renumbered and amended by Ord. 50 of 02,s.16.

75. Prosecution for offences by public officers.- (1) No court shall take cognizance of an offence under sub-section (2) of section 67, section 69, section 70, section 71 or section 72, except upon a complaint in writing made by order of, or under authority from, the Commissioner

(2) The Commissioner shall, if he has reasons to believe that any offence specified in sub-section (1) has been committed, cause such inquiries to be made or prosecution to be instituted as he may think fit.

[1][75A. Court proceeding relating to election expenses.—The Commissioner shall direct the Returning Office to initiate proceeding in the appropriate court against the person who contravenes the provisions of section 28 or fails to comply with the provisions of section 29.]

76. Limitation for prosecution for corrupt or illegal practices. No prosecution for an offence under section 58 or section 65 shall be commenced except—

(a) within six months of the commission of the offence; or

(b) if the election at which the offence was committed in subject to an election petition and the Tribunal has made an order in respect of such offence, within three months of the date of such order.

CHAPTER VII-BYE-ELECTION

77. Casual vacancies.— [2][(1)] When, before the expiration of the term of office of a member elected to the Senate, his seat becomes vacant or is declared vacant or his election to the Senate is declared void, the Commissioner shall, by notification in the official Gazette, call upon the elected members of the Provincial Assembly by the members of which the member was elected to elect a person for the purpose of filling the vacancy so caused before such date as may be specified in the notification; and the provisions of this Act and of the rules shall apply, as far as may be, in relation to the election of a member to fill such vacancy.

[2][(2) When the seats of two or more members who were elected to the Senate by the same Provincial Assembly and whose term of office was due to expire on the same day become vacant simultaneously, elections to fill such seats may be held together.]

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[1]Ins by Ord. 50 of 02, s.17.

[2]Re-numbered and added by the Senate (Election) (Amdt.) Ordinance, 1977 (17 of 1977), s.2.

CHAPTER VIII-DISQUALIFICATIONS

78. Disqualification. A person shall be disqualified from being elected as and from being, a member of the Senate, if—

[1][**(a)** he is of unsound mind and has been so declared by a competent court, or

(b) he is an undischarged insolvent; or

(c) he ceases to be a citizen of Pakistan, or acquires the citizenship of a foreign State; or

(d) he holds an office of profit in the service of Pakistan other than an office declared by law not to disqualify its holder; or

(e) he is in the service of any statutory body or anybody which is owned or controlled by the Government or in which the Government has a controlling share or interests; or

(f) he being a citizen of Pakistan by virtue of section 14B of the Pakistan Citizenship Act, 1951 (II of 1951), he is for the time being disqualified under any law in force in Azad Jammu and Kashmir from being elected as a member of the Legislative Assembly of Azad Jammu and Kashmir; or

(g) he is propagating any opinion, or acting in any manner, prejudicial to the Ideology of Pakistan, or the sovereignty, integrity or security of Pakistan, or morality, or the maintenance of public order, or the integrity or independence of the Judiciary or Pakistan, or which defames or brings into ridicule the judiciary or the Armed Forces of Pakistan; or

(h) he has been convicted by a court of competent jurisdiction on a charge of corrupt practice, moral turpitude or misuse of power or authority under any law for the time being in force; or

(i) he has been dismissed from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a local government on the grounds of misconduct involving moral turpitude; or

(j) he has been removed or compulsorily retired from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a local Government on the grounds of misconduct involving moral turpitude: or

(k) he has been in the service of Pakistan or of any statutory body or any body which is owned or controlled by the Government or in which the Government has a controlling share of interest, unless a period of two years has elapsed since he ceased to be in such service; or

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[1]Subs. by Ord. 50 of 2002, s.18.

(l) he, whether by himself, or by any person or body of persons in trust for him or for his benefit or on his account or as a member of a Hindu undivided family, has any share or interest in a contract, not being a contract between a cooperative society and Government, for the supply of goods to, or for the execution of any contract or for the performance of any service undertaken by, Government:

Provided that the disqualification under this paragraph shall not apply to a person--

(i) where the share or interest in the contract devolves on him by inheritance or succession or as a legatee, executor or administrator, until the expiration of six months after it has so devolved on him;

(ii) where the contract has been entered into by or on behalf of a public company as defined in the Companies Ordinance, 1984 (XLVII of 1984), of which he is a shareholder but is not a director holding an office of profit under the company; or

(iii) where he is a member of a Hindu undivided family and the contract has been entered into by any other member of that family in the course of carrying on a separate business in which he has no share or interests; or

Explanation.—In this Article "goods" does not include agricultural produce or commodity grown or produced by him or such goods as he is ,under any directive of Government or any law for the time being in force, under a duty or obligation to supply.

(m) he holds any office of profit in the service of Pakistan other than the following offices namely:—

(i) an office which is not whole time office remunerated either by salary or by fee;

(ii) the office of Lumbardar, whether called by this or any other title;

(iii) the Qaumi Razakars;

(iv) any office the holder whereof, by virtue of such office, is liable to be called up for military training or military service under any law providing for the constitution or raising of a Force: or

(n) he has been convicted and sentenced to imprisonment for having absconded by a competent court under any law for the time being in force; or

(o) he has obtained a loan for an amount of two million rupees or more, from any bank, financial institution, cooperative society or cooperative body in his own name or in the name of his spouse or any of his dependents, which stands unpaid for more than one year from the due date or has had such loan written off; or

(p) he or his spouse or any of his dependents has defaulted in payment of government dues and utility charges, including telephone electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six months; or

(q) he is for the time being disqualified from being elected or chosen as a member of the Majlis-e-Shoora (Parliament) or of a Provincial Assembly under the Constitution or any law for the time being in force.]

Explanation.- For the avoidance of doubt, it is hereby declared that a Judge of the Supreme Court or a High Court, the Auditor-General and an Advocate-General are persons holding office of profit in the service of Pakistan.

79. Disqualification on account of certain offences.— [1][(1)] Where a person has been convicted for having exceeded the limit of election expenses laid down by section 28 or having failed to file the return of election expenses in accordance with section 29 or for any other offence under this Act, not being an offence for which he has been sentenced to imprisonment for a term of not less than two years, or has been found guilty of any corrupt or illegal practice by a Tribunal, he shall, if the Commissioner makes an order to that effect, be disqualified, for such period not exceeding five years as may be specified in the order, from being, or being elected as, a member of the Senate.

[1][(2) Where a person has been convicted for an offence punishable under section 171J of the Pakistan Penal Code Act 1860 (XLV of 1860) he shall be disqualified for a period of seven years from being elected as, a member of the Senate.]

80. Removal and remission of disqualification. The Commissioner may, on an application made in this behalf, remit any disqualification for failure to submit the return of election expenses or for any error or incorrect statement in such return, if he is satisfied that such failure or error occurred or incorrect statement was made due to circumstances beyond the control of the applicant.

CHAPTER IX.— MISCELLANEOUS

81. Extension of time for completion of election. It shall be competent for the Commissioner, for reasons which he considers sufficient, to extend the time for the completion of any election by making necessary amendments in the notification issued under section 10.

82. Term of Office.—(1) The term of office of a member of the Senate shall commence on the date of the first meeting of the Senate held after the names of the persons elected to the Senate are notified by the Election Commission :

Provided that the term of office of a member elected in the year 1973 and having a term of four years shall expire after completion of four years from the date of making the oath under Article 65.

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[1]Re-numbered and added by the Senate (Election) (Amdt.) Ordinance, 1984 (56 of 1984),s.2.

(2) If the election of a member is declared void and another candidate is declared to have been duly elected in his place, the term of such candidate shall be the unexpired term of such member.

(3) If the election of all the members declared elected under section 18 is section 25 is declared void, the term of the members elected in their places shall be the unexpired term of the members whose election is declared void.

[1][**82A Drawing of lots for determining term of office of individual members**.— (1) For the purpose of dividing the members [2][into two groups], the Commissioner shall draw lots in the prescribed manner and in the presence of such members or persons authorised by them in writing as may be present, after notifying in the official Gazette the time and place of drawing of lots.

(2) The term of office of each member determined under sub-section (1) shall be notified by the Commissioner in the official Gazette.

(3) If the election of a member whose term of office is determined under sub-section (1) is declared void and another candidate is declared to have been duly elected in his place, the term of such candidate shall be the unexpired term of such member.

(4) If the election of all the members [3]** * is declared void, the members elected in their place shall be divided into two groups and the term of their office determined and notified in the manner specified in sub-sections (1) and (2):

Provided that the term of office of the members so elected shall be the unexpired term of the members of the respective groups].

83. Vacancy in membership of Provincial Assemblies not to invalidate election. No election by the members of a Provincial Assembly shall be called in question on the ground merely of the existence of any vacancy in the membership of that Provincial Assembly.

84. Commissioner to ensure fair election, etc. Save as otherwise provided, the Commissioner may issue such instructions and exercise such powers including the power to review an order passed by any officer under this Act or the rules, and make such consequential orders, as may, in his opinion, be necessary for ensuring that an election is conducted honestly, justly and fairly and in accordance with the provisions of this Act and the rules.

85. Directions of Commissioner in certain matters. Anything required to be done to carry out the purposes of this Act for which no provision or no sufficient provision exists shall be done by such authority and in such manner as the Commissioner may direct.

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[1]Ins. by the Senate (Election) (Amdt.) Ordinance, 1977 (17 of 1977),s.3.
[2]Subs. by the Senate (Election) (Amdt.) Act, 1986 (5 of 1986) s.4.
[3]Omitted by the Senate (Elelction) (Amdt.) Act, 1986 (5 of 1986) s.4.

86. Jurisdiction of courts barred. No court shall question the legality of any action taken in good faith by, or under the authority of, the Commissioner, a Returning Officer or a Polling Officer or any decision given by any of them or by any other officer or authority appointed under this Act or the rules.

87. Protection or action taken in good faith. No suit, prosecution or other legal proceeding shall lie against the Commissioner or any officer or other person in respect of anything which is in good faith done or intended to be done under or in pursuance of this Act or any rule or order made, or direction given, thereunder.

88. Power to make rules.— (1) The Federal Government may, in consultation with the Commissioner, make rules[1] for carrying out the purpose of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:–

(a) the duties of Returning Officers and Polling Officers at polling stations;

(b) the identification of voters;

(c) the manner in which votes are to be given both, generally and in, the case of illiterate voters or voters under physical or other disability;

(d) the procedure as to voting to be followed at elections held in accordance with the system of proportional representation by means of the single transferable vote;

(e) the scrutiny and counting of votes, including cases in which a recounting of votes should be made before the declaration of the result of election;

(f) the safe custody of ballot boxes, ballot papers and other election papers, the period for which such papers shall be preserved and the inspection and production of such papers;

(g) the appointment of agents of candidates; and

(h) any other matter which is to be or may be prescribed under this Act.

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[1]For the Senate (Election) Rules, 1975, see S.R.O. 725(I)/75, dated 28-6-75, Gaz. of Pak., 1975, Ext., (Islamabad) Pt. II, pp.1305-1308.

THE NATIONAL AND PROVINCIAL ASSEMBLIES (ELECTIONS TO RESERVED SEATS) ACT, 1976

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THE NATIONAL AND PROVINCIAL ASSEMBLIES (ELECTIONS TO RESERVED SEATS) ACT, 1976.

[1]ACT No. XVIII OF 1976

[*18th April, 1976*]

An Act to provide for the conduct of elections to the reserved seats in the National Assembly and the Provincial Assemblies.

WHEREAS it is expedient to provide for the conduct of elections to the reserved seats in the National Assembly and the Provincial Assemblies and to guard against corrupt and illegal practices and other offences at or in connection with such elections and for the determination of doubts and disputes arising out of or in connection with elections, and other matters arising out of or connected therewith;

It is hereby enacted as follows:—

———

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the National and Provincial Assemblies (Elections to Reserved Seats) Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(i) "Article" means Article of the Constitution;

(ii) "Assembly" means the National Assembly or a Provincial Assembly for a Province;

(iii) "candidate" means a person seeking election as a member;

(iv) "Commission" means the Election Commission constituted under Article 218;

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[1]*For Statement of Objects and Reasons, see Gaz. of P., 1976, Ext., Pt. III, p. 325.*
This Act has been repealed in its application to the election to which the Representation of the People Act, 1976 (85 of 1976) applies, see Act No. 85 of 1976, s. 109.

(V) "Commissioner" means the Chief Election Commissioner appointed under the Constitution and includes—

(i) the person continuing in the office of Chief Election Commissioner by virtue of Article 275; and

(ii) a judge of the Supreme Court nominated under Article 217 to act as Chief Election Commissioner ;

(vi) "constituency" means a constituency delimited under the Delimitation of Constituencies Act, 1974 (XXXIV of 1974), provided that in respect of a bye-election to a seat reserved for women, in the National Assembly or a Provincial Assembly, to be held at any time before the expiry of the term of the first National Assembly, it shall mean a constituency delimited under the Delimitation of Constituencies Order, 1970;

(vii) "election" means election to a seat of a member held under this Act;

(viii) “election petition” means an election petition made under section 12;

(ix) “elector”, in relation to an Assembly, means a person elected to a general seat in that Assembly;

(x) “member” means member of an Assembly;

(xi) “prescribed” means prescribed by rules made under this Act;

(xii) “returned candidate” means a candidate who has been declared elected as a member under this Act;

(xiii) "Tribunal" means an Election Tribunal appointed under section 17 for the trial of election petitions.

CHAPTER II
ELECTION COMMISSION

3. Procedure of the Commission.—(1) Subject to the provisions of this section, the Commission shall regulate its procedure.

(2) If, upon any matter requiring a decision of the Commission, there is difference of opinion among its members, the opinion of the majority shall prevail and the decision of the Commission shall be expressed in terms of the opinion of the majority.

(3) The Commission may exercise its powers and perform its functions notwithstanding that there is a vacancy in the office of any one of its members or that any one of its members is, for any reason, unable to attend its proceedings and the decision of the other two members shall have the effect of the decision of the Commission:

Provided that, in the event of a difference of opinion between the two members attending the proceedings of the commission,—

(a) if the Commissioner is one of the two members, his opinion shall prevail and the decision of the Commission shall be expressed in terms of that opinion; and

(b) in the other case, the matter shall be placed for a decision before the Commission.

4. Power to punish for contempt. The Commission, the Commissioner and the members of the Commission shall have the same powers to punish its or their contempt as are vested in a High Court under Article 204.

5. Delegation of powers, etc. The Commission may authorise its Chairman or any of its members or any of the officers of the Commission to exercise and perform all or any of its powers and functions under this Act.

6. Assistance to the Commission.—(1) All executive authorities in the Federation and in the Provinces shall render such assistance to the Commissioner and the Commission in the discharge of his or their functions as may be required of them by the Commissioner or the Commission.

(2) The Commissioner or the Commission may require any person or authority to perform such functions or render such assistance for the purpose of this Act as he or it may direct.

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CHAPTER III

ELECTION TO SEATS RESERVED FOR WOMEN OR

CERTAIN COMMUNITIES

7. Election to reserved seats.—(1) The members for seats reserved for women in an Assembly shall be elected, subject to the provisions of clause (5) of Article 51 or, as the case may be, clauses (4) and (5) of Article 106, by the persons elected to the general seats in that Assembly so that there is one member for each of the constituencies for seats reserved for women in that Assembly.

(2) The members for seats reserved in an Assembly for persons belonging to the Christian, Hindu. Sikh, Buddhist and Parsi Communities and persons of the Quadiani group or the Lahori group (who call themselves 'Ahmadis') and other non-Muslims and persons belonging to the scheduled castes shall be elected, subject to the provisions of clause (4A) of Article 51 or, as the case may be, clause (5) of Article 106, by the persons elected to the general seats in that Assembly.

(3) The Commission shall hold and conduct the election to fill the seats reserved in an Assembly for the persons referred to in clause (3) of Article 106 or for women in such manner as it may think fit

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CHAPTER IV

ELECTION EXPENSES

8. Definition. In this Chapter, "election expenses" means any expenditure incurred before, during and after an election or payment made, whether by way of gift, loan, advance, deposit or otherwise, for the arrangement, conduct or benefit of or in connection with, or incidental to, the election of a candidate, including the expenditure on account of issuing circulars or publications or otherwise presenting to the electors the candidate or his views, aims or objects.

9. Restriction on election expenses.—(1) No person shall, except as provided in sub-section (2), make any payment whatsoever towards the election expenses of a candidate except to such candidate.

(2) No person other than the candidate shall incur any election expenses of such candidate:

Provided that any person may, if so authorised by a candidate in writing specifying a maximum amount, to the extent of such amount, make payment for stationery, postage, telegram and other petty expenses.

(3) The election expenses of a candidate shall not exceed,—

(a) in the case of an election to a seat in the National Assembly, thirty-five thousand rupees;

(b) in the case of an election to a seat in a Provincial Assembly, twenty-five thousand rupees.

(4) Any person incurring any expenditure or making any payment under sub-section (2) shall, within fourteen days of the declaration of the result of the election, send to the candidate a statement of such expenditure or the particulars of such payment.

(5) A candidate shall, by a bill stating the particulars and by a receipt, vouch for every payment made in respect of election expenses, except where the amount is less than twenty-five rupees.

10. Return of election expenses.—(1) Every candidate shall, within forty-five days after the publication of the name of the returned candidate, submit to the returning Officer a return of election expenses in the prescribed form containing ;

(a) a statement of all payments made by the candidate together with all the bill and receipts;

(b) a statement of all disputed claims of which the candidate is aware;

(c) a statement of all unpaid claims, if any, of which the candidate is aware; and

(d) a statement of all moneys, securities or equivalent of money received from any person for the purpose of election expenses specifying the name of every such person.

(2) The return submitted under sub-section (1) shall be accompanied by an affidavit in the prescribed form sworn by the contesting candidate.

11. Inspection of returns, etc.—(1) The return and documents submitted under section 10 shall be kept by the Commissioner in his office or at such other convenient place as he may think fit and shall, during one year from the date of their receipt by him, be open to inspection by any person on payment of the prescribed fee.

(2) The Commissioner shall, on an application made in this behalf and payment of the prescribed fee, give any person copies of any return or document kept under sub-section (1) or of any part thereof.

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CHAPTER V

ELECTION DISPUTES

12. Election Petition.—(1) No election shall be called in question except by an election petition made by a candidate for that election (hereinafter in this Chapter referred to as the petitioner).

(2) An election petition shall be presented to the Commissioner within forty-five days of the publication in the official Gazette of the name of the returned candidate and shall be accompanied by a receipt showing that the petitioner has deposited at any branch of the National Bank of Pakistan or at a Government Treasury or sub-Treasury in favour of the Commissioner, under the prescribed head of account, as security for the costs of petition, a sum of one thousand rupees.

13. Presentation of petition.—(1) An election petition shall be presented by a petitioner and shall be deemed to have been presented—

(a) when it is delivered in person to the Secretary to the Commission or to such other officer as may be appointed by the Commission in that behalf,—

(i) by the petitioner; or

(ii) by a person authorised in writing in this behalf by the petitioner ; or

(b) when delivered by registered post to the Secretary to the Commission or to such other officer as aforesaid.

(2) An electron petition, if sent by registered post, shall be deemed to have been presented in time if it is posted within the period specified in sub-section (2) of section 12.

14. Parties to the petition. The petitioner shall join all the candidates as respondents to his election petition and shall serve personally or by registered post on each such respondent a copy of his petition.

15. Contents of petition.—(1) Every election petition shall contain—

(a) a precise statement of the material facts on which the petitioner relies;

(b) full particulars of any corrupt or illegal practice or other illegal act alleged to have been committed, including as full a statement as possible of the names of

the parties alleged to have committed such corrupt or illegal practice or illegal act and the date and place of the commission of such practice or act; and ‘

(c) the relief claimed by the petitioner.

(2) A petitioner may claim as relief any of the following declarations, namely:—

(a) that the election of the returned candidates is void;

(b) that the election of the returned candidate is void and that the petitioner or some other person has been duly elected; or

(c) that the election as a whole is void.

(3) Every election petition and every schedule or annex to that petition shall be signed by the petitioner and verified in the manner laid down in the Code of Civil Procedure, 1908 (Act V of 1908), for the verification of pleadings.

16. Procedure on receipt of petition by the Commissioner.—(1) If the Commissioner finds that any provision of section 12, section 13 or section 14 has not been compiled with, the petition shall be dismissed forthwith.

(2) If an election petition is not dismissed under sub-section (1), the Commissioner shall refer it for trial to a Tribunal.

17. Appointment of Tribunal.—(1) For the trial of election petitions under this Act, the Commissioner shall appoint as many Election Tribunals as may be necessary.

(2) An Election Tribunal shall consist of a person who is or has been a judge of the Supreme Court or High Court.

18. Power to transfer petition. The Commissioner, either of his own motion or on an application made in this behalf by any of the parties, may, at any stage, transfer an election petition from one Tribunal to another Tribunal and the Tribunal to which the election petition is so transferred—

(a) shall proceed with the trial of the petition from the stage from which it is transferred; and

(b) may, if it thinks fit, recall and examine any of the witnesses already examined.

19. Place of trial. The trial of an election petition shall be held at such place or places as the Tribunal may think fit.

20. Attorney-General, etc., to assist the Tribunal. In the case of an election petition relating to an election to the National Assembly, the Attorney-General for Pakistan, and in the case of such petition relating to an election to a Provincial Assembly, the Advocate-General for the Province, shall render to the Tribunal such assistance at the hearing of the petition as it may require.

21. Appearance before Tribunal. Any appearance, application or act before a Tribunal may be made or done by a party in person or by an advocate or any other person entitled or allowed to plead in any civil court and duly appointed to act on his behalf:

Provided that the Tribunal may, where it considers it necessary, direct any party to appear in person.

22. Procedure before Tribunal.—(1) Subject to the provisions of this Act and the rules, every election petition shall be tried, as nearly as may be, in accordance with the procedure for the trial of suits under the Code of Civil Procedure, 1908 (Act V of 1908):

Provided that the Tribunal may—

(a) make a memorandum of the substance of the evidence of each witness as his examination proceeds unless it considers that there is special reason for taking down the evidence of any witness in full; and

(b) refuse to examine a witness if it considers that his evidence is not material or that he has been called on a frivolous ground for the purpose of delaying the proceedings.

(2) Subject to the provisions of this Act the Evidence Act, 1872 (Act I of 1872) shall apply for the trial of an election petition.

(3) The Tribunal may, at any time, upon such terms and on payment of such fee as it may direct, allow a petition to be amended in such manner as may, in its opinion, be necessary for ensuring a fair and effective trial and for determining the real questions at issue, so, however, that no new ground of challenge to the election is permitted to be raised.

(4) At any time during the trial of an election petition, the Tribunal may call upon the petitioner to deposit such further sum by way of security, in addition to the sum deposited under section 12, as it may think fit.

23. Dismissal of petition during trial. The Tribunal shall dismiss an election petition, if—

(a) the provisions of section 14 or section 15 have not been complied with; or

(b) if the petitioner fails to make the further deposit required under sub-section (4) of section 22.

24. Powers of the Tribunal. The Tribunal shall have all the powers of civil court trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), and shall be deemed to be a civil court within the meaning of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

25. Further provision relating to evidence and witnesses.—(1) Notwithstanding anything to the contrary contained in any other law for the time being in force, no document shall be inadmissible in evidence at the trial of an election petition only on the ground that it is not duly stamped or registered.

(2) No witness shall be excused from answering any question as to any matter in issue, or relevant to a matter in issue, in the trial of an election petition upon the ground that the answer to such question may incriminate or tend to incriminate him or that it may expose or tend to expose him to any penalty or forfeiture; but no witness shall be required or permitted to state for whom he has voted at an election.

(3) A witness who answers truly all questions which he is required to answer shall be entitled to receive a certificate of indemnity from the Tribunal and an answer given by him to a question put by or before the Tribunal shall not, except in the case of any criminal proceeding for perjury in respect of his evidence, be admissible in evidence against him in any civil or criminal proceedings.

(4) A certificate of indemnity granted to any witness under sub-section (3) may be pleaded by him in any court and shall be a full and complete defence to or upon any charge under Chapter IXA of the Pakistan Penal Code (Act XLV of 1860) or under this Act arising out of the matter to which such certificate relates, but it shall not be deemed to relieve him from any disqualification in connection with an election imposed by any law for the time being in force.

(5) The reasonable expenses incurred by any person in attending to give evidence may be allowed to him by the Tribunal and shall, unless the Tribunal otherwise directs, be deemed to be part of the costs.

26. Recrimination where seat is claimed.—(1) Where in an election petition a declaration is claimed that a candidate other than the returned candidate has been duly elected, the returned candidate or any other party may produce evidence to prove that the election of such other candidate would have been declared void had he been the returned candidate and had a petition been presented calling his election in question:

Provided that the returned candidate or such other party as aforesaid shall not be entitled to give such evidence unless he or it has, within the fourteen days next following the commencement of the trial, given notice to the Tribunal of his intention so to do and has also deposited the security referred to in section 12.

(2) Every notice referred to in sub-section (1) shall be accompanied by a statement of the case, and all the provisions relating to the contents, verification, trial and procedure of an election petition, or to the security deposit in respect of an election petition, shall apply to such a statement as if it were an election petition.

27. Decision of the Tribunal.—(1) The Tribunal may, upon the conclusion of the trial of an election petition, make an order—

(a) dismissing the petition;

(b) declaring the election of the returned candidate to be void;

(c) declaring the election of the returned candidate to be void and the petitioner or any other candidate to have been duly elected; or

(d) declaring the election as a whole to be void.

(2) The decision of a Tribunal on an election petition shall be final.

28. Ground for declaring election of returned candidate void.—(1) The Tribunal shall declare the election of the returned candidate to be void if it is satisfied that—

(a) the returned candidate was not qualified for, or was disqualified from, being elected as a member; or

(b) the election of the returned candidate has been procured or induced by any corrupt or illegal practice; or

(c) a corrupt or illegal practice has been committed by the returned candidate or by any other person with the connivance of the candidate.

(2) The election of a returned candidate shall not be declared void on the ground—

(a) that any corrupt or illegal practice has been committed, if the Tribunal is satisfied that it was not committed by, or with the consent or connivance of, that candidate and that the candidate took all reasonable precaution to prevent its commission; or

(b) that any of the other candidates was not qualified for, or was disqualified from, being elected as a member.

29. Ground for declaring a person other than a returned candidate elected. The Tribunal shall declare the election of the returned candidate to be void and the petitioner or any other candidate to have been duly elected, if it is so claimed by the petitioner or any of the respondents and the Tribunal is satisfied that the petitioner or such other candidate was entitled to be declared elected.

30. Ground for declaring election as a whole void. The Tribunal shall declare the election as a whole to be void if it is satisfied that the result of the election has been materially affected by reason of—

(a) the failure of any person to comply with the provisions of this Act or the rules; or

(b) the prevalence of extensive corrupt or illegal practice al the election.

31. Decision in case of equality of votes.—(1) Where after the conclusion of the trial, it appears that there is an equality of votes between two or more candidates and the addition of one vote for one candidate would entitle him to be declared elected, the Tribunal shall so inform the Commissioner who shall then direct a fresh poll to be taken in respect of the said candidates and fix a date for such poll.

(2) All the provisions of this Act relating to preservation and inspection of documents shall apply to the fresh poll as at an election held under the provisions of this Act.

32. Other provisions relating to Tribunal.—(1) An order of the Tribunal under section 27 shall take effect on the date on which it is made and shall be communicated to the Commissioner who shall publish it in the official Gazette.

(2) The Tribunal shall after an election petition has been disposed of, forward the record thereof to the Commissioner who shall retain it for a period of five years from the date of its receipt and shall thereafter cause it to be destroyed.

33. Withdrawal of petition.—(1) An election petition may be withdrawn—

(a) before the Tribunal has been appointed, by leave of the Commissioner; and

(b) after a Tribunal has been appointed, by leave of the Tribunal.

(2) Where leave is granted by the Tribunal, the petitioner shall be ordered to pay the costs incurred by the respondents to the election petition or such portion thereof as the Tribunal may direct.

34. Abatement on death of petitioner.—(1) An election petition shall abate on the death of a sole survivor of several petitioners.

(2) Where a petition abates under sub-section (1) after a Tribunal has been appointed, notice of the abatement shall be given by the Tribunal to the Commissioner.

35. Death or withdrawal of respondent. If, before the conclusion of the trial of an election petition, a respondent dies or gives notice in the prescribed form that he does not intend to contest the petition, and no respondent remains to contest the petition, the Tribunal shall, without any further hearing, or after giving such person as it may think fit an opportunity of being heard, decide the case *ex-parte*.

36. Failure of petitioner to appear. Where, at any stage of the trial of an election petition, no petitioner makes an appearance, the Tribunal may dismiss the petition for default, and make such order as to costs as it may think fit.

37. Order as to costs.—(1) The Tribunal shall, when making an order under section 27, also make an order determining in its discretion the costs and specifying the person by and to whom such costs are to be paid.

(2) If, in any order as to costs under sub-section (1) there is a direction for the payment of costs by any party to any person, such costs shall, if they have not already been paid, be payable in full and shall, upon application in writing in that behalf made to the Tribunal within six months of the order by the person to whom costs have been awarded, be paid, as far as possible, out of the security for costs deposited by such party.

(3) Where no costs have been awarded against a party who has deposited security for costs, or where no application for payment of costs has been made within the aforesaid six months, or where a residue remains after costs have been paid out of the security, such security or the residue thereof, as the case may be, shall upon application in writing therefor by the person who made the deposit or by his legal representative, be returned by the Tribunal to the person making the application.

(4) Any order for costs may be enforced upon application in writing made to the principal civil court of original jurisdiction of the district in which the person from whom the costs are to be recovered resides or owns property, as if such order were a decree passed by that court:

Provided that no proceeding shall be brought under this sub-section except in respect of costs which have not been recovered by an application under sub-section (2).

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CHAPTER VI

OFFENCES, PENALTY AND PROCEDURE

38. Corrupt practice. A person is guilty of corrupt practice if he—

(1) contravenes the provisions of section 9;

(2) is guilty of bribery, personation or undue influence;

(3) makes or publishes a false statement concerning the personal character of a candidate or any of his relations calculated to adversely affect the election of such candidate or for the purpose of promoting or procuring the election of another candidate, unless he proves that he had reasonable grounds for believing, and did believe, the statement to be true; or

(4) calls upon or persuades any person to vote, or to refrain from voting, for any candidate on the ground that he belongs to a particular religion, community, race, cast, *bradari*, sect or tribe.

39. Bribery. A person is guilty of bribery, if he, directly or indirectly, by himself or by any other person on his behalf,—

(1) receives or agrees to receive or contracts for any gratification for voting or refraining from voting, or for being or refraining from being a candidate, at an election; or

(2) gives, offers or promises any gratification to any person—

(a) for the purpose of inducing—

(i) a person to be, or to refrain from being, a candidate at an election ; or

(ii) an elector to vote, or refrain from voting, as an election; or

(b) for the purpose of rewarding a person for having been or for having refrained from being, a candidate at an election.

Explanation.— In this section, "gratification" includes a gratification in money estimable in money and all forms of entertainment or employment.

40. Undue influence. A person is guilty of undue influence, if he—

(1) in order to induce or compel any person to vote or refrain from voting, or to offer himself as a candidate, at an election, directly or indirectly, by himself or by any other person on his behalf,—

(a) makes or threatens to make use of any force, violence or restraint;

(b) inflicts or threatens to inflict any injury, damage, harm or loss;

(c) calls down or threatens to call down divine displeasure or the displeasure of any saint or *pir*;

(d) gives or threatens to give any religious sentence; or

(e) use any official influence or governmental patronage; or

(2) on account of any person having voted or refrain from voting, or having offered himself as a candidate, does any of the acts specified in clause (1); or

(3) by abduction, duress or any fraudulent device or contrivance,—

(a) impedes or prevents the free exercise of the fran chise by an elector; or

(b) compels, induces or prevails upon any elector to vote or refrain from voting.

Explanation.—In this section, "harm" includes social ostracism or ex-communication or expulsion from any caste or community.

41. Penalty for corrupt practice. Any person guilty of corrupt practice shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to five thousand rupees, or with both.

42. Illegal practice.—(1) A person is guilty of illegal practice if he—

(a) fails to comply with the provisions of section 10;

(b) obtains or procures, or attempts to obtain or procure, the assistance of any person in the service of Pakistan to further or hinder the election of a candidate; or

(c) knowingly induces or procures any person to do any of the aforesaid acts.

(2) Any person guilty of illegal practice shall be punishable with fine which may extend to two thousand rupees.

43. Assistance by Government servant. A person in the service of Pakistan is guilty of an offence punishable with imprisonment for a term which may extend to two years, or with fine which may extend to two thousand rupees, or with both, if he misuses his official position in a manner calculated to influence the result of the election.

44. Certain offences cognizable. Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), an offence punishable under section 41 shall be cognizable offence.

45. Court proceedings relating to election expenses. The Commission shall direct an officer subordinate to it to launch proceedings in the appropriate court against persons who contravene the provisions of section 9 or fail to comply with the provisions of section 10.

46. Court to report convictions to the Commission. A court convicting any person for an offence punishable under this Chapter, other than corrupt practice, shall send a report to the Commission of such conviction together with its recommendations, if any, considering the special circumstances of any case, for the mitigation or remission of any disqualification incurred by such person under this Act.

47. Punishment under this Chapter not in derogation of any other Liability. Any punishment imposed on any person for an offence punishable under this chapter shall be in

addition to, and not in derogation of, any liability incurred by such person under any other provision of this Act.

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CHAPTER VII

DISQUALIFICATIONS

48. Disqualifications. A person shall be disqualified from being elected as, and from being, a member of an Assembly, if:—

(a) he has been, on conviction for any offence, sentenced to imprisonment for a term of not less than two years, unless a period of five years has elapsed since his release; or

(b) he has been dismissed or removed or compulsorily retired from the service of Pakistan, unless a period of five years has elapsed since his dismissal or removal or compulsory retirement; or

(c) he, whether by himself or by any person in trust for him or for his benefit or on his account or as a member of a Hindu undivided family, has any share or interest in a contract, not being a contract between a cooperative society and Government, for the supply of goods to, or for the execution of any work or the performance of any service undertaken by Government :

Provided that the disqualification under this clause shall not apply to a person—

(i) where the share or interest in the contract devolves on him by inheritance or succession or as a legatee executor or administrator, until the expiration of six months after it has so devolved on him; or

(ii) where the contract has been entered into by or on behalf of a public company as defined in the Companies Act, 1913 (VII of 1913), of which he is a shareholder but is neither a director nor a person holding an office of profit under the company nor a managing agent; or

(iii) where the contract entered into by him in the course of his trade or business with the Government for the supply of goods to, or for the execution for any work or the performance of any service undertaken, by that Government, does not subsist;

Explanation.—A contract shall not be deemed to subsist by reason only of the fact that the person was enrolled as a contractor with the Government or that the government has not performed its part of the contract, either wholly or in part.

iii- where he is a member of a Hindu undivided family and the contract has been entered into by any other member of that family in the course of carrying on a separate business in which he has no share or interest;

(d) he is a managing agent, manager or secretary of, or holds any other office carrying the right to remuneration in any company or corporation (other than a cooperative society) in the capital of which the Government has not less than

twenty-five per cent share or which is managed by the Government; or

(e) he is found guilty of a corrupt or illegal practice under any other law for the time being in force, unless a period of five years has elapsed from the date on which that order takes effect; or

(f) he holds any office of profit in the service of Pakistan other than the following offices, namely:—

(i) an office which is not a whole time office remunerated either by salary or by fee;

(ii) the office of Lambardar, whether called by this or any other title;

(iii) the Qaumi Razakars;

(iv) any office the holder whereof, by virtue of holding such office, is liable to be called up for military training or military service under any law providing for the constitution or raising of a force.

Explanation.—For the avoidance of doubt, it is hereby declared that a judge of Supreme Court or a High Court the Auditor-General and an Advocate-General are persons holding an office of profit in the service of Pakistan.

49. Disqualification on account of certain offences. Where a person has been convicted for having exceeded the limit of election expenses laid down by section 9 or having failed to file the return of election expenses in accordance with section 10 or for any other offence under this Act or has been found guilty of any corrupt or illegal practice by a Tribunal, he shall, if the Commissioner makes an order to that effect, be disqualified, for such period not exceeding five years as may be specified in the order, from being, or being elected as, a member of an Assembly.

50. Removal and remission of disqualification. The Commissioner may, on an application made in this behalf, remit any disqualification for failure to submit the return of election expenses or for any error or incorrect statement in such return, if he is satisfied that such failure or error occurred or incorrect statement was made due to circumstances beyond the control of the applicant.

CHAPTER VIII

MISCELLANEOUS

51. Commission to ensure fair election, etc. Save as otherwise provided, the Commission may issue such instructions and exercise such powers, and make such consequential orders, as may, in its opinion, be necessary for ensuring that an election is conducted honestly, justly and fairly, and in accordance with the provisions of this Act and the rules.

52. Directions of Commission in certain matters. Anything required to be done for carrying out the purpose of this Act for which no provision or no sufficient provision exists shall be done by such authority and in such manner as the Commission may direct.

53. Jurisdiction of courts barred. No court shall question the legality of any action taken in good faith by or under the authority of the Commission or the Commissioner, or any decision given by the Commission or the Commissioner

54. Protection of action taken in good faith. No suit, prosecution or other legal proceeding shall lie against the Commission, the Commissioner or any officer or other person in respect of anything which is in good faith done or intended to be done under or in pursuance of this Act or of any rule or order made or any direction given thereunder.

55. Power to make rules. The Commissioner may, with the approval of the President, make rules for carrying out the purposes of this Act.

56. Commission to be construed as Commissioner in certain cases. For the purpose of holding an election to fill a casual vacancy in an Assembly, reference in this Act to the Commission shall be construed as referred to the Commissioner.

57. [*Repeal*.] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

THE ELECTORAL ROLLS ACT, 1974

Last Amended on 2016-06-18

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*THE ELECTORAL ROLLS ACT, 1974
[1]ACT NO. XXI OF 1974

[22nd *April*, 1974]

An Act to provide for the preparation and revision of electoral rolls for elections to the National Assembly and the Provincial Assemblies.

WHEREAS it is expedient to provide for the preparation and revision of electoral rolls for elections to the National Assembly and the Provincial Assemblies and for matters connected therewith and incidental thereto:

It is hereby enacted as follows:—

1. Short title, extent and commencement. —(1) This Act may be called the Electoral Rolls Act, 1974.

(1) It shall come into force at once.

(2) It extends to the whole of Pakistan.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

[2][(1) "Commissioner" means the Chief Election Commissioner appointed under the Election Commission Order, 1977 [President's (PP) Order No. 4 of 1977];].

[3][(1A) "Commission" means the Elecxtion Commission constituted under Article 218 of the Constitution of the Islamic Republic of Pakistan.

(1B) "data" means, any information in digital form contained in a database mainained by the Commission.

(1C) "database" for the purpose of this Act, means the database of the Electoral Rolls maintained by the Commission"]

(2) "electoral area" means—

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[1] For Statement of Objects and Reasons, see Gaz. of P., 1974. Ext., Pt. III, p. 301.
This Act has been applied to the Provincially Administered Tribal Areas of Baluchistan. see Notification No. SO (TA) 3/32/73 dated the 25th Sep., 1974 see Gaz of Baluchistan Ext Issue No. 71 of 1974.

[2] Subs. by the Electoral Rolls (Amdt.) Ordinance, 1978 (39 of 1978), s. 2.

[3] Added and subs. by Act XI of 2011, 2 and 6.

*Amendment in Electoral roll Act 1974, See Ordinance No. VII of 2014, Amendment in section 2, 4 in new section 4A Also amendment in section 27 (valid upto 10-02-2015)

[1]**[(a)** in rural areas, a village or a census block; and

(b) in urban areas,—

(i) where there is a municipal ward or census block, such ward or census block;

(ii) where there is no municipal ward or a census block, a well-defined mohallah or a street; and

(iii) where the ward or census block, mohallah or street is too big, a well-defined part thereof; or]

(c) such other areas as may be determined by [2][Commission];

[4][(2A) "local government" means the local government established under a Federal or a Provincial law relating to local government;

(2B) "local government law" means a Federal or a Provincial law relating to local government;]

(3) "prescribed" means prescribed by rules made under this Act;

(4) "Registration Officer" means a Registration Officer appointed under section 5, and includes an Assistant Registration Officer performing the functions of a Registration Officer; and

(5) "Revising Authority" means a person appointed under section 9 to hear and dispose of claims and objections and applications for correction relating to the electoral rolls.

3. Assistance to [3][Commission]. —(1) The [3][Commission] may require any person or authority to perform such function or render such assistance for the purposes of this Act as the [3][Commission] may direct.

(2) All executive authorities of the Federal Government, each Provincial Government, the Federal Capital and the Federally Administered Tribal Areas shall assist the [3][Commission] in the performance of [3][its] functions under this Act and for this purpose the [3][Commission] may issue such directions as [3][it] may consider necessary.

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[1]Subs. by Ord. 9 of 02, s. 2.
[2]Added and subs. by Act XI of 2011, 2 and 6.
[3]Subs. by Act XI of 2011, s. 6.
[4]Ins. by Act XXVIII of 2016, s. 2.

(3) The Federal Government and each Provincial Government shall make available to the [1][Commission] such staff as [1][it] may require for the performance of [1][its] functions under this Act.

[2][4. **Preparation and computerization of electoral rolls for election to the Assemblies.**—(1) The [1][Commission] shall cause to be prepared the electoral rolls for election to the National "Assembly"[3][,] Provincial Assemblies, [3][and Local Government] afresh or by revising the electoral rolls existing immediately before the commencement of electoral Rolls (Amendment) Ordinance, 2000 and revised from time to time in the prescribe manner.

(2) The [1][Commission] shall make arrangements for the computerization of the electoral rolls in the manner as [1][it] may determine and any printout of the computer maintained by, or with the authority of, the [1][Commission] shall be deemed to be an electoral roll published under this Act.

[3][**4A. Procedure of Commission.**–The Commission shall regulate its own procedure.].

5. Appointment of Registration Officers, etc. —(1) The [1][Commission] shall appoint a Registration Officer for an electoral area or group of electoral areas for the purpose of preparation,' revision, correction and amendment of the electoral rolls and may, for the purpose, appoint as many Assistant Registration Officers as may be necessary.

(2) Subject to such instructions as may be given in this behalf by the [1][Commission],—

(a) an Assistant Registration Officer may, under the control of the Registration Officer, perform the functions of a Registration Officer; and

(b) a Registration Officer may require any person to assist him in the performance of ; [1][its] functions.

6. [2][(1) Subject to the superintendence, directions and control of the [1][Commission], the Registration Officer shall prepare the electoral rolls by including therein the name of every person entitled to be enrolled as voter in the electoral area under this Act.]

(2) A person shall be entitled to be enrolled as a voter in an electoral area if he—

(a) is a citizen of Pakistan;

[4]**(b)** is not less than eighteen years of age and possesses National Identity Card issued by the National Database and Registration Authority constituted under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000), or comes in possession of such National Identity Card on the last date fixed for inviting claims, objections and applications for corrections, if any, for the purpose of preparing or revising the electoral rolls:

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[1] Subs. by Act XI of 2011, s. 6.
[2] Subs. by Ord. 51 of 2000, s. 2 and 3.
[3] Ins & Omitteded by Act XXVIII of 2016, s, 3-4.
[4] Subs by Act XI of 2011, s. 3.

Provided that National Identity Card issued by National Database and Registration Authority shall be deemed to be valid for the purpose of registration as voter or casting vote at a poll, notwithstanding the expiry of its validity period.]

[1]* * * * * * *

(c) is not declared by a competent court to be of unsound mind; and

(d) is, or is deemed under section 7 to be, resident in the electoral area;

[2]* * * * * * *

7. Meaning of resident. —(1) Save as hereinafter provided, a person shall be deemed to be resident in an electoral area if he ordinarily resides, or owns or is in possession of a dwelling house or other immovable property, in that area.

(2) Where a person owns or possesses dwelling houses or other immovable property in more than one electoral area, he may, at his option, be enrolled in any one such area.

(3) A person who is in the service of Pakistan or holds any public office shall be deemed to be resident in the electoral area where he is posted, unless he applies in writing to the Registration Officer for enrolment in the electoral area in which he would have been enrolled if he had not been in such service or had not held such office.

(4) The wife of any such person as is referred to in sub-section (3) and such of his children as are entitled to be enrolled shall, if they ordinarily reside with such person, be deemed to be residents in the electoral area in which such person is deemed to be resident under that sub-section.

(5) A person who is detained in prison or held in other custody at any place in Pakistan shall be deemed to be resident in the electoral area in which he would have been resident if he had not been so detained or held in such custody.

8. Preliminary publication. The preliminary electoral rolls prepared under section 6, together with a notice inviting claims and objections and applications for corrections, if any, with respect thereto, shall be published and displayed in such manner and form as may be prescribed.

9. Appointment of Revising Authorities. The [3][Commission] shall appoint a. Revising Authority for any electoral area or group of electoral areas, for the purpose of receiving and deciding claims, objections and applications for corrections relating thereto.

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[1] Omitted, Ord. 9 of 02, s. 3.
[2] The proviso which was subs. by Ord. 43 of 1978 has been omitted ibid.,
[3] Subs by Act XI of 2011, s. 6.

10. Period for lodging claims and objections. Every claim for inclusion of a name in the electoral roll, and every objection to, or application for correction of, any entry theirin shall be made to the Revising Authority on the prescribed form within a period of twenty-one days next following the date of the publication of the preliminary electoral rolls under section 8.

11. Transfer of name from one electoral area to another. A person may apply for transfer of his name from the electoral roll of one electoral area to the electoral roll of another by filing—

(a) an objection to the inclusion of his name in the roll in which it has been included, and

(b) a claim for the inclusion of his name in the other, with the appropriate Revising Authority or Revising Authorities, if it is preferred before the final publication of the electoral roll under section 16, or with the appropriate Registration Officer or Registration Officers, if it is preferred after such final publication.

12. Rejection of claims and objections. Any claim or objection or application for correction not made within the period specified in section 10 or in the prescribed manner shall be rejected.

13. Application by the Registration Officer for inclusion of names. The Registration Officer may, within the period mentioned in section 10, apply to the Revising Authority,—

(a) for the inclusion in the electoral roll of the name of any person left out due to inadvertence or the absence of timely information while preparing the preliminary electoral rolls; or

(b) for the exclusion of any name from the electoral roll or any correction of clerical, printing or other error which he is himself authorised to make under sub-section (2) of section 15.

14. Enquiry into claims and objection, etc. —(1) Except where a claim or objection or an application for correction is rejected under section 12, or is decided without further inquiry being valid *prima facie*, the Revising Authority shall, give its decision after holding a summary inquiry into each claim, objection or application, after giving notice to the parties concerned.

(2) Every decision of the Revising Authority under sub-section (1) shall be final and be communicated to the appropriate Registration Officer.

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[1] Ins. by Ord. 34 of 07, s. 2 (valid upto 30-10-07).
Subs. by Act XI of 2011, s. 6.

15. Correction of electoral rolls. The Registration Officer—

(i) shall correct the electoral roll in accordance with the decisions of the Revising Authority under section 14; and

(ii) may further correct any clerical, printing or. other error *subsequently* discovered in the roll, but not so as to include therein or exclude therefrom, the name of any elector.

16. Final publication. After making additions, deletions, modifications or corrections, if any, under section 15, the Registration Officer shall publish in the prescribed manner and form the final electoral roll for each electoral area.

17. Annual revision of electoral roll. An electoral roll shall be revised and corrected annually in the prescribed manner and form—

(a) so as to include the name of any qualified person whose name does not appear on such roll, or

(b) so as to delete the name of any person who has died or who is or has become disqualified for enrolment, or

(c) for correcting any entry or for supplying any omission in such roll:

Provided that, if for any reason, the electoral roll for any electoral area is not revised, the validity or continued operation of the electoral roll shall not thereby be affected.

18. Enrolment and correction at a time other than the annual revision.—(1) Any person whose name is not included in an electoral roll for the time being in force and who claims that he was or is entitled to be enrolled on that roll may apply to the appropriate Registration Officer [1][along with a photo state copy of identity card [2][issued, or deemed to have been issued, to him under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000).] for the inclusion of his name therein, and if the Registration Officer is satisfied after giving such notice and making such inquiry as he may consider necessary that the applicant was or in entitled to have his name enrolled, he shall for the purpose of further correcting the roll insert the name of such person in that roll [;][3]

[2][Provided that if the name of applicant is already included in the electoral roll of any other electoral area of the same district or any other district, the Registration Officer shall strike off his name from the roll of that other electoral area of the same district and inform the Registration Officer of other district who shall, on receipt of the information, strike off the name of the applicant from that roll

(2) Any person may apply to the Registration Officer for the correction of any entry in an electoral roll for the time being in force; and

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[1]Ins. by the Electoral Rolls (Amdt.) Ordinance, 1982 (20 of 1982), s. 2.
[2]Subs and added by Ord 51 of 2000, s. 5.
[3]Omitted Subs by Act XI of 2011, S. 4 & 6.

(a) if the entry relates to the applicant and the Registration Officer is satisfied after giving such notice and making such inquiry as he may consider necessary that the entry relates to the applicant and is erroneous or defective in any particular, he shall correct the roll accordingly; and

(b) if the entry does not relate to the applicant and the Registration Officer is satisfied after giving notice to the person to whom the entry relates and after making such inquiry as he may consider necessary that the entry is erroneous or defective or should be deleted, he shall correct the electoral roll accordingly.

[1][(3) Where the Registration Officer rejects application made under sub-section (1) or sub-section (2), he shall record in writing brief reasons of his decision.

(4) A person aggrieved by the order of the Registration Officer made under sub-section (1) or sub-section (2) may, within thirty days of such order, appeal to the appellate authority to be appointed by the Commissioner and the decision of such authority given thereon shall be final).

19. Preparation of rolls afresh. If the [1][Commission], on account of any gross error or irregularity in or in the preparation of an electoral roll for any electoral area or a part thereof, considers it necessary so to do, [2][it] may by order direct that the roll for such area or part shall stand cancelled and that a fresh electoral roll for that area or part be prepared in accordance with the provisions of this Act.

20. No correction to be made after constituency called upon in elect. No revision or correction of any electoral roll for an electoral area shall be made nor shall any order under section 19 be made in respect of any electoral roll at any time after the constituency of which such electoral area forms part has been called upon to elect its representative and before such representative has been elected.

21. Maintenance of electoral rolls. An electoral roll as revised and corrected shall be maintained in the prescribed manner and shall be kept open to public inspection; and copies of such roll shall be supplied to any person applying therefor, on payment of such fee as may be prescribed.

22. Departure from normal procedure in exceptional circumstances. Where the [1][Commission] is satisfied that it is not possible to follow the procedure laid down for the preparation of an electoral roll in respect of any electoral area, he may direct that an electoral roll for such electoral area shall be prepared in such manner as [1][it] deems fit.

23. Duration of the electoral rolls. The electoral roll for any electoral area prepared under this Act shall come into force immediately upon its final publication and shall remain in force until revised.

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[1]Subs. by Act XI of 2011, s. 6

[2]Subs and Omitted by Act XI of 2011 s. 4 and 6.

24. Access to register of births and deaths, etc.—(1) The person in charge of any register of births and deaths and any authority to whom an application for registration is to be made under [1][National Database and Registration Authority Ordinance, 2000 (VIII of 2000)], shall at the request of a Registration Officer furnish him with such information, including extracts from such register of, as the case may be, application, as may be necessary for the purposes of this Act.

(2) Sub-section (1) shall have effect notwithstanding anything contained [1][section 28 of the National Database and Registration Authority Ordinance, 2000 (VIII of 2000) and no person who furnishes any information to a Registration Officer in pursuance of the said sub-section shall be liable to any punishment.

25. No person to be enrolled more than once or in more than one electoral area. No person shall be enrolled—

(a) on the electoral roll for any electoral area more than once; or

(b) on the electoral rolls for more than one electoral area.

26. Validity of electoral rolls, etc, not affected by reason of any mistake. An electoral roll shall not be invalid by reason of any misdescription of a person enrolled thereon or of omission of the name of any person entitled to be so enrolled or of inclusion of the name of any person not so entitled.

27. [2][Commission's] power to include a name in an electoral roll. Subject to section 20 the [2][Commission] may, at any time, order—

(a) the inclusion in an electoral roll of the name of any person entitled to be enrolled on such electoral roll, and such name shall, from the date of such order, form part of the electoral roll;

(b) the exclusion from an electoral roll of the name of any person who has died or has become disqualified to be a voter, and such name shall, from the date of such order, stand excluded from that roll; and

(c) the removal of the name of any person from an electoral roll where such removal becomes necessary due to the repetition of the name in the same electoral roll or in the electoral rolls of more than one electoral area.

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[1] Subs. by Ord. 51 of 2000, s. 5.
[2] Subs. by Act XXVIII of 2016, s. 5.

28. Power to make rules. —[1][(1)] The [2][Commission] may, with the approval of the President and by notification in the official Gazette, make rules[3] for carrying out the purposes of this Act.

[4][(2) Where a form has been prescribed for any of the purposes of this Act or the rules made thereunder, the Commissioner may, by notification in the official Gazette, make such modifications or additions in the form as may in [2][its] opinion be necessary :

Provided that the validity of an electoral roll prepared in the prescribed form for the time being in force shall not be affected by any modification or addition made in the form subsequent to the preparation of the roll.].

[5][**28A. Emoval of difficulties**. If any difficulty arises in giving effect to any of the provisions of this Act, the President may make such provision for the removal of the difficulty as [2][it] may deem fit.].

29. Bar of Jurisdiction. No court shall question the validity of the electoral rolls prepared or revised under this Act or the legality of or propriety of any proceedings or action taken thereunder by or under the authority of the Commissioner or a Registration Officer.

30. *[Repeal of P.O. No. 6 of 1969.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981) s. 3 and Sch., II.*

[6]**[30. Breach of official duty.** Where a Registration Officer, an Assistant Registration Officer or any other person appointed in connection with official duly under this Act, willfully or without reasonable cause, commits breach of official duty by any act or omission, the Commissioner may suspend such officer or person and initiate proceedings against him and refer the ease along with statement of allegations to the Federal Government where such officer or person is serving under the Federal Government and in other cases the Provincial Government.

[2]**[30A. Information not to be divulged**.—Any person who—

(a) being an employee of the Commission publishes or communicates to any person, any information or data acquired by him in the course of such employment without being so authorized by the Commission.

(b) breaches, in any manner, the security or integrity of the information or data contained in the electoral rolls database.

(c) having possession of any information or data which to his knowledge has been obtained or disclosed in contravention of this Act or in breach of the security, secrecy or integrity thereof, publishes or communicates that information or data to any other person ; or

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[1] Re-numbered by the Electoral Rolls (Amdt) Ordinance, 1978 (39 of 1978), s. 5.

[2] Subs by Act XI of 2011, s. 6.

[3] For the Electoral Rolls Rules: 1947 see S.R.O. No. 1035 (I)/74. dated 31-7-1974. Gaz. of P., 1974 Ext., (Islamabad) Pt. II. pp. 1447—53.

[4] Sub-section (2) which was originally added by Ord. 39 of 1978 s. 6, have been subs, by Electoral Rolls (Amdt.) Ord.. 1984 (25 of 1984), s. 2.

[5] ins. by the Electoral Rolls (Amdt.) Ordinance 1984 (48 of 1984), s. 2.

[6] Added by Ord. 51 of 2000, s.6.

(d) misuses or abuses, in any manner, the information or data contained in the electoral rolls database,

shall be punishable with imprisonment for a term which may extend to five years, with fine which may be extend to five million rupees, or with both.].

31. Certain offences triable by Registration officer.—Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), the Registration Officer, if so authorized by the [1][Commission] in this behalf, may—

(a) exercise the powers of a Magistrate of the first class under the said Code in respect of the offences punishable under sections 172, 173, 174, 175, 177, 178, 179, 180, 182, 186, 187, 188, 189, 191, 196, 197, 198. 199, 200,464 and 471 of the Pakistan Penal Code, 1860 (Act XLV of 1860); and

(b) take cognizance of any such offence and shall try it summarily in accordance with the provisions of Code of Criminal Procedure, 1898 (Act V of 1898), relating to summary trials.]

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[1]Subs by Act XI of 2011, s. 6.

THE DELIMITATION OF CONSTITUENCIES ACT, 1974

Last Amended on 2016-06-10

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THE SCHEDULE..

[1]THE DELIMITATION OF CONSTITUENCIES ACT, 1974

[2]ACT NO. XXXIV OF 1974

[8th May, 1974]

An Act to provide for the delimitation of constituencies for elections to the National Assembly and the Provincial Assemblies.

WHEREAS it is expedient to provide for the delimitation of constituencies for elections to the National Assembly and the Provincial Assemblies and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

1. Short title and commencement. —(1) This Act, may be called the Delimitation of Constituencies Act, 1974.

(2) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context—

(a) "Article" means Article of the constitution of the Islamic Republic of Pakistan hereinafter referred to as the Constitution;

(b) "Commission" means the Election Commission constituted under Article 218;

[3]**[(ba)** "local government" means a local government established under a Federal or a Provinicial law relating to local government;

(bb) "local government law" means a Federal or a Provincial law relating to local government;

(bc) "council" means a local council as defined in the respective Federal or Provincial local government laws;]

(c) "population" means the population in accordance with the [4][last preceding] census officially published; and

(d) all words and expressions used but not defined in this Act shall have the same meaning as in the Constitution.

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[1] Amendment in delimitation of constituencies Act 1974.

[2]For Statement of Objects and Reasons, see Gaz. of Pakistan. 1974 Ext., Pt. 111. p. 560.
The Act has been applied to the Federally Administered Tribal Areas, see Gaz. P. 1974 Ext., Pt. II, p. 1978 vide S.R.O. 1418(1)/74,dated the 14th November, 1974.
The Act has been applied w.e.f. the 23rd Sept., 1974 to the Provincially Administered Tribal Areas of Chitral, Dir. Swat. Kalam, Malakand Protected Area the Tribal Area adjoining Hazara Distt. and former State of Amb : see Gaz. of N W.F.P. 1974 Ext.. p. 241-b.
This Act has been amended by Ord. No. XXXVIII of 1978 and Ord. No. XXVII of 1979 for the purpose of Elections held in 1985.
This Act has been applied to the Provincially Administered Tribal Areas of Baluchistan by Notification No. S.O. (TA) 3/32/73, dt. 25-9-1974 the Gaz. of Baluchistan. Ext.. Issue No. 71 of 1974.
This Act has further been amended by Ordinance No. XXIX of 1988.
The Delimitation of Constituencies (Amendment) Act, 1989 (III of 1989) shall apply to the Federally Administered Tribal Areas w.e.f the date Act III of 1989 received President's assent i.e. 9-2-1989 see S.R.O. No. 1093(I)/90, dated 3rd September. 1990. Gazette of Pakistan, Extraordinary Part-III, dated 22-10-1990 page 1848.

[3]Ins. by Act, XXVI 2016, s.2.

[4]Subs. by the Delimitation of Constituencies (Amdt.) Ordinance, 1988 (4 of 1988), s. 2, for "1972" which was previously amended for "last preceding" by Ord. 50 of 1984, s. 2, to read as above.

3. Commission to delimit constituencies. The Commission shall delimit territorial constituencies for elections to the National Assembly and to each Provincial Assembly in accordance with the provisions of the Constitution and this Act.

[1]["3A. **Delimitaion of constituences for local government election.** The Commission shall also delimit territoral constituencies for elections to the local governments in accordance with the provisions of the local government Law and the rules made thereunder of each Province."]

4. Procedure of Commission. —(1) Subject to the provisions of this section, the Commission shall regulate its own procedure.

(2) If, upon any matter requiring the decision of the Commission, there is difference of opinion amongst its members, the opinion of the majority shall prevail and the decision of the Commission shall be expressed in terms of the opinion of the majority.

(3) The Commission may exercise its powers and performs its functions notwithstanding that there is a vacancy in the office of any one of its members or that any one of its members is, for any reason, unable to attend its proceedings and the decision of the [1][majority of the members of the Commission] shall have the effect of the decision of the Commission:

[2][Provided that—

(a) where the members attending the proceedings of the Commission are four and they are equally divided in their opinion; or

(b) where the members attending the proceedings of the Commission are three and there is difference of opinion amongst them;

the matter shall be placed before the Commission for decision.]

[2][**"5. Delegation of powers, etc.**—(1) The Commission may authorize three or more of its members, acting together, to exercise and perform all or any of its powers and functions under this Act.

(2) Where four members are authorized under sub-section (1) the decision of majority shall prevail and where three members are authorized as aforesaid the decision shall be unanimous :

Provided that—

(a) where four members have been authorized and they are equally divided in their opinion; or

(b) where three members have been authorized and there is difference of opinion amongst them;

the matter shall be placed before the Commission for decision.:]

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[1] Ins. by Act No. XXVI of 2016, s.3.
[2] Subs. by Act XII of 2012, s. 2 and 3.

6. Assistance to the Commission. —(1) The Commission may require any person or authority to perform such functions or render such assistance for the purposes of this Act as it may direct.

(2) All executive authorities of the Federal Government and each Provincial Government shall assist the Commission in the performance of its functions and for this purpose the Commission may issue such directions as it may consider necessary.

[1][**7. Allocation of seats in the National Assembly.** —(1) On the basis of population, the seats in the National Assembly for each Province, the Federally Administered Tribal Areas and the Federal Capital are allocated as set out in the table below:—

S No.	Province/Area	General Seats	Women Seats	Total
1.	Baluchistan	14	3	17
2.	Khyber Pakhtunkhwa	35	08	43
3.	Punjab	148	35	183
4.	Sindh	61	14	75
5.	Federally Administered Tribal Areas	12	-	12
6.	Federal Capital	02	-	02
	Total	272	60	332

Provided that in addition to the number of seats referred in the above table there shall be in the National Assembly ten seats reserved for non-Muslims as defined in Article 260 of the Constitution."]

[2]* * * * * * *

[3][(2) The seats allocated under sub-section (I) shall be reallocated after each succeeding census.]

[1][**8. Delimitation of Constituencies.**—(1) For the purposes of election to the National Assembly, the Commission shall divide,—

(a) each Province into as many separate territorial constituencies as the number of general seats allocated to that Province under section 7; and

(b) the Federally Administered Tribal Areas and the Federal Capital into as many separate territorial constituencies, as the number of general seats respectively allocated to said Areas and Federal Capital under section7.

(2) The constituencies for the seats reserved for women in the National Assembly shall be such that each Province forms one constituency with as many such seats as are allocated to that Province under section 7.

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[1] Subs by Act XII of 2012, s. 4.
[2] Omitted by the Delimitotion of Constituencies (Amdt.) Ordinance, 1984 (50 of 1984) s.3.
[3] Added by the Delimitation of Constituencies (Amdt.) Act, 1989 (3 of 1989). s. 3.

(3) The constituency for all seats reserved for non-Muslims in the National Assembly under clause (4) of Article 51 shall be the whole country.

(4) For the purpose of election to Provincial Assemblies, the Commission shall divide each Province into as many separate territorial constituencies as the number of general seats given below:

Province/ Area	General Seats	Women Seats	Non-Muslims	Total
Baluchistan	51	11	3	65
Khyber Pakhtunkhwa	99	22	3	124
Punjab	297	66	8	371
Sindh	130	29	9	168

(5) The constituencies for the seats reserved for women and non-Muslims in the Provincial Assemblies shall be such that each Province forms one constituency with as many such seats as are allocated to that Province under sub-section (4)".

[1]["(6) For the purpose of election to the local government, the Commission shall divide each local government into as many separate territorial constituencies and the number of councils and seats for direct election as provided in the respective Federal or Provincial local government laws."].

[2][9. Principles of delimitation.—(1) All constituencies for general seats shall, as far as practicable, be delimited having regard to the distribution of population in geographically compact areas, existing boundaries of administrative units, facilities of communication and public convenience and other cognate factors to ensure homogeneity in the creation of constituencies:

Provided that for the purpose of delimiting constituencies for the general seats for the Federally Administered Tribal Areas two or more separate areas may be grouped into one constituency.

(2) As far as may be the constituencies for election to the same Assembly shall be equal among themselves in population.]

10. Reports of Commission and list of constituencies.—(1) For the purpose of delimiting constituencies, the Commission may receive and consider representations, hold inquiries, summon witnesses and record evidence, and shall prepare and publish in the official Gazette a preliminary report and list of constituencies specifying the areas proposed to be included in each constituency.

(2) Any person entitled to vote at an election to the National Assembly [1][or a local council] may, within [3][fifteen] days of the publication of the report under sub-section (1), make a representation to the Commission in respect of the delimitation of constituencies.

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[1] Added and Ins. by Act XXVI. 2016, s. 4 and 5.
[2] Subs. by Act XII of 2012 s. 5 and 6.
[3] Subs, by the Delimitation of Constituencies (Amdt.) Act, 1989 (3 of 1989), s. 6, for "thirty".

(3) The Commission shall, after hearing and considering the representations, if any, received by it, make such amendments, alterations or modifications, in the preliminary list published under sub-section (1) as it thinks fit or necessary, and shall publish in the official Gazette the final report and list of constituencies showing the areas included in each constituency.

[1][**10A. Power of Commission to make amendment, alteration or modification in the final list of constituencies.** Notwithstanding anything contained in this Act, the Commission may, at any time, of its own motion, make such amendments, alterations or modifications in the final list of constituencies published under sub-section (3), or in the areas included in a constituency, as it thinks, necessary.

10B. Removal of difficulties. If any difficulty arises in giving effect to any of the provisions of this [2][Act] the President may make such provision for the removal of the difficulty as he may deem fit.].

11. Bar of Jurisdiction. The validity of the delimitation of any constituency, or of any proceedings taken or anything done by or under the authority of the Commission, under this Act shall not be called in question in any court.

[3]["**12. Power to make rules**.—The Commission may, with the approval of the President and by notification in the official Gazette, make rules for carrying out the purpose of this Act."].

[4]***THE SCHEDULE.***—*Omitted by the Delimitation of the Constituencies (Amdt.) Ordinance, 1988 (IV of 1988) s. 8.*

[5][****]

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[1] Ins. by the Delimitation of Constituencies (Amdt) Ordinance, 1984 (50 of 1984). s.4

[2] Subs, by Act 3 of 1989, s. 7, for "Order".

[3] Added by Act No. XXVI of 2016, s. 6.

4 The Schedule was added by the Delimitation of Constituencies (Amdt.) Ordinance, 1985(1 of 1985), s. 4,

[5] Omitted by Act XII of 2012 s.7